

ELIZABETH II



1983 CHAPTER xvi

An Act to provide for the improvement of land drainage and the relief of flooding in the valley of the river Soar; to authorise the Severn-Trent Water Authority to construct works and to acquire lands; to confer further powers on the Authority; and for other purposes.

[1st December 1983]

WHEREAS the Severn-Trent Water Authority (hereinafter in this Act referred to as “the Authority”) were in pursuance of the Water Act 1973 constituted as the authority responsible for water conservation, land drainage, the supply of water, the provision of public sewerage and sewage disposal, the prevention of pollution, water recreation and the management and improvement of salmon, trout and freshwater fisheries in an area which includes the valley of the river Soar (hereinafter in this Act referred to as “the river”): 1973 c. 37.

And whereas the river has been designated as one of the main rivers for which the Authority are responsible as the drainage authority for the catchment area of the river and it is expedient and in the public interest that land drainage in that area should be improved:

And whereas at certain times of year there is extensive flooding of the land adjacent to the river:

And whereas the flooding of such land could be substantially alleviated by carrying out certain works to control the flow of the river and in places to separate the River Soar Navigation of the British Waterways Board from the river and it is expedient and in the public interest to authorise the Authority to acquire the land for the construction of such works:

And whereas it is expedient that the Authority should be empowered to construct the works which they are by this Act authorised to construct and to acquire lands and easements for such works:

And whereas it is expedient that the other provisions in this Act should be enacted:

And whereas the objects of this Act cannot be effected without the authority of Parliament:

And whereas plans and sections showing the lines, situations and levels of the works authorised by this Act, and a book of reference to such plans containing the names of the owners and lessees, or reputed owners and lessees, and of the occupiers, of the lands which may be acquired or used compulsorily under the powers of this Act, have been deposited in the office of the Clerk of the Parliaments and in the Private Bill Office, House of Commons, and with the chief executives of the county councils of the counties of Leicestershire and Nottinghamshire and such plans, sections and book of reference are in this Act respectively referred to as the deposited plans, the deposited sections and the deposited book of reference:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

PART I

PRELIMINARY

Citation. 1. This Act may be cited as the Severn-Trent Water Authority Act 1983.

Interpretation. 2.—(1) In this Act, unless the subject or context otherwise requires, the following expressions have the meanings hereby respectively assigned to them:—

“ the Act of 1961 ” means the Land Compensation Act 1961;
 “ the Act of 1963 ” means the Water Resources Act 1963;

1961 c. 33.
 1963 c. 38.

- “ the Act of 1965 ” means the Compulsory Purchase Act 1965; PART I
—cont.
- “ the Act of 1976 ” means the Land Drainage Act 1976; 1965 c. 56.
- “ the Authority ” means the Severn-Trent Water Authority; 1976 c. 70.
- “ the board ” means the British Waterways Board;
- “ the control gates ” means Works Nos. 17, 22, 32 and 52 or any of them;
- “ the Minister ” means the Minister of Agriculture, Fisheries and Food;
- “ the navigation ” means the River Soar Navigation from its junction with the river Trent to Leicester;
- “ the river ” means the river Soar;
- “ statutory undertakers ” has the meaning given by section 329 of the Highways Act 1980; 1980 c. 66.
- “ telegraphic line ” has the same meaning as in the Telegraph Act 1878; 1878 c. 76.
- “ the Third Schedule ” means the Third Schedule to the Water Act 1945; 1945 c. 42.
- “ the tribunal ” means the Lands Tribunal;
- “ the works ” means Works Nos. 1 to 58 and any works, apparatus and conveniences connected therewith, constructed or provided by the Authority as part of, or in connection with, or for the purposes of, those works or any of them.

(2) References in this Act to reference points shall be construed as references to National Grid reference points.

(3) Unless the subject or context otherwise requires, any reference in this Act to a work identified by the number of such work or by such number and a letter of the alphabet shall be construed as a reference to the work of that number or of that number and letter (as the case may be) authorised by this Act.

3.—(1) (a) For the purposes of this Act, sections 6, 83 and 85 of the Third Schedule shall apply to the Authority and the works. Application of enactments.

(b) The said sections are hereby incorporated with this Act and, as so incorporated, shall have effect as if for references therein to undertakers there were substituted references to the Authority.

(2) Section 16 of the Railways Clauses Consolidation Act 1845 and the provisions of that Act with respect to the temporary occupation of lands near the railway during the construction thereof are hereby incorporated with this Act and, as so incorporated, shall have effect as if—

(a) for the words “ the period by the special Act limited for the completion of the railway ” there were substituted

PART I
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the words “ the period of five years from the respective dates of commencement of the construction of the works authorised by the special Act ”;

(b) the expression “ the company ” meant the Authority;

(c) the words “ the lands described in the said plans or mentioned in the said book of reference ” in the said section 16 meant the lands so described and mentioned within the limits of deviation shown on the deposited plans; and

(d) the expression “ the railway ” meant the works authorised by this Act and “ the centre of the railway ” meant the centre line of any such works respectively.

1981 c. 67.

(3) (a) Part I of the Act of 1965 (except section 4, section 27 and sub-paragraph (3) of paragraph 3 of Schedule 3 thereof), in so far as it is applicable for the purposes of this Act and is not inconsistent with the provisions thereof, shall apply to the compulsory acquisition of land under this Act as it applies to a compulsory purchase to which Part II of the Acquisition of Land Act 1981 applies and as if this Act were a compulsory purchase order under the said Act of 1981.

(b) In subsection (1) of section 11 of the Act of 1965, as so applied, for the words “ fourteen days ” there shall be substituted the words “ three months ”.

1845 c. 18.

(c) The Lands Clauses Consolidation Act 1845 shall not apply to the acquisition of land under this Act.

PART II
WORKSPower to
construct
works.

4.—(1) Subject to the provisions of this Act the Authority may in the lines or situations and within the limits of deviation shown on the deposited plans and according to the levels shown upon the deposited sections make and maintain in the counties of Leicestershire and Nottinghamshire the works hereinafter described, together with all necessary works and conveniences connected therewith:—

The parish of Lockington-Hemington in the district of North West Leicestershire in the county of Leicestershire—

Work No. 1 A flood defence commencing at reference point SK 4780 3069 and terminating at reference point SK 4933 3089.

Work No. 1A A flood defence (including the raising of Warren Lane) commencing at reference point SK 4770 3045 and terminating at reference point SK 4771 3048.

Work No. 1B A flood defence commencing at reference point SK 4755 3009 and terminating at reference point SK 4754 3007.

Work No. 2 A flood defence commencing at reference point SK 4933 3089 and terminating at reference point SK 4917 3021.

The parish of Lockington-Hemington and the parish of Ratcliffe-on-Soar in the borough of Rushcliffe in the county of Nottinghamshire—

Work No. 3 A footbridge over the river at reference point SK 4913 3035.

The parish of Ratcliffe-on-Soar—

Work No. 4 A lowering of the upstream sill and gates of Redhill Lock at reference point SK 4922 3031.

The parish of Lockington-Hemington—

Work No. 5 A river channel commencing at reference point SK 4919 3022 and terminating at reference point SK 4925 3015.

The parishes of Lockington-Hemington and Ratcliffe-on-Soar and the parish of Kegworth in the district of North West Leicestershire—

Work No. 6 A widening and deepening of the river channel and raising of bank levels commencing at reference point SK 4922 3031 and terminating at reference point SK 4925 2880.

The parishes of Lockington-Hemington and Kegworth—

Work No. 7 A lock and approaches commencing at reference point SK 4910 2930 and terminating at reference point SK 4914 2922, including demolition and infilling of existing lock at reference point SK 4914 2927.

The parish of Kegworth—

Work No. 8 A deepening of the navigation along Ratcliffe Cut commencing at reference point SK 4914 2922 and terminating at reference point SK 4920 2875.

The parishes of Ratcliffe-on-Soar and Kegworth—

Work No. 9 A lowering of the weirs at Ratcliffe at reference points SK 4925 2880 and SK 4922 2887.

Work No. 9A A weir at reference point SK 4925 2883.

The parish of Ratcliffe-on-Soar—

Work No. 10 A flood defence (including improvements to local drainage) commencing at reference point

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—cont.

SK 4964 2902 and terminating at reference point SK 4968 2869.

The parishes of Kingston-on-Soar and Sutton Bonington in the borough of Rushcliffe and the parishes of Ratcliffe-on-Soar and Kegworth—

Work No. 11 A widening and deepening of the river channel and raising of bank levels commencing at reference point SK 4925 2880 and terminating at reference point SK 4900 2675.

The parish of Kingston-on-Soar—

Work No. 12 A raising of the banks along Kingston Brook commencing at reference point SK 4939 2782 and terminating at reference point SK 4971 2784.

The parishes of Kingston-on-Soar and Kegworth—

Work No. 13 A diversion of the navigation commencing at reference point SK 4947 2740 and terminating at reference point SK 4939 2709 including an underpinning of two arches of Kegworth Road Bridge at reference point SK 4933 2723 and a river channel commencing at reference point SK 4932 2721 and terminating at reference point SK 4933 2713.

Work No. 13A A lowering of Kegworth Shallow Lock.

The parish of Kegworth—

Work No. 14 A flood defence commencing at reference point SK 4917 2799 and terminating at reference point SK 4896 2690.

The parish of Kingston-on-Soar—

Work No. 15 A lock at reference point SK 4927 2681.

Work No. 16 An extension of the Bowmer Drain commencing at reference point SK 4926 2680 and terminating at reference point SK 4929 2680.

The parish of Kegworth—

Work No. 17 Control gates at reference point SK 4900 2675 and an access road commencing at reference point SK 4891 2673 and terminating at reference point SK 4899 2675.

The parish of Long Whatton in the district of North West Leicestershire, so much of the borough of Charnwood in the county of Leicestershire as was formerly the borough of Loughborough (in this section and in Schedule 1 to this Act referred to as “the Loughborough area”) and the parishes of Kegworth and Sutton Bonington—

Work No. 18 A widening and deepening of the river channel and raising of bank levels commencing at reference

point SK 4900 2675 and terminating at reference point SK 5090 2341.

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The parish of Sutton Bonington—

Work No. 19 A raising of the towpath commencing at reference point SK 4920 2681 and terminating at reference point SK 4998 2482.

Work No. 20 A flood defence commencing at reference point SK 5027 2574 and terminating at reference point SK 5062 2484.

Work No. 21 A flood defence commencing at reference point SK 5028 2326 and terminating at reference point SK 5147 2324.

The Loughborough area—

Work No. 22 A diversion of the river commencing at reference point SK 5090 2341 and terminating at reference point SK 5099 2339 and the provision of control gates at reference point SK 5094 2339 and an access road commencing at reference point SK 5018 2319 and terminating at reference point SK 5096 2337.

The parishes of Normanton-on-Soar and Stanford-on-Soar in the borough of Rushcliffe, the parishes of Cotes, Prestwold and Walton-on-the-Wolds in the borough of Charnwood and the Loughborough area—

Work No. 23 A widening and deepening of the river channel and raising of bank levels commencing at reference point SK 5099 2339 and terminating at reference point SK 5533 2043.

The parish of Stanford-on-Soar—

Work No. 23A A flood defence commencing at reference point SK 5286 2216 and terminating at reference point SK 5288 2214.

The parish of Normanton-on-Soar—

Work No. 24 A flood defence commencing at reference point SK 5152 2344 and terminating at reference point SK 5156 2319.

Work No. 25 A pumping station and approach channel at reference point SK 5191 2247 and an access road commencing at reference point SK 5191 2247 and terminating at reference point SK 5205 2280.

The Loughborough area—

Work No. 26 A raising of the bank along Black Brook commencing at reference point SK 5213 2199 and terminating at reference point SK 5187 2128.

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Work No. 27 A flood defence commencing at reference point SK 5300 2200 and terminating at reference point SK 5302 2197.

Work No. 27A A flood defence commencing at reference point SK 5310 2185 and terminating at reference point SK 5313 2181.

Work No. 28 A raising of the bank along Hermitage Brook commencing at reference point SK 5440 2150 and terminating at reference point SK 5452 2048.

Work No. 28A A flood defence at reference point SK 5438 2148.

The parish of Cotes and the Loughborough area—

Work No. 29 A diversion of the river commencing at reference point SK 5502 2085 and terminating at reference point SK 5506 2086.

The parishes of Cotes, Prestwold and Walton-on-the-Wolds—

Work No. 30 A river channel commencing at reference point SK 5533 2043 and terminating at reference point SK 5531 2032 including a stank across the approach channel to Cotes Mill and the removal of two existing weirs.

Work No. 30A An underpinning of Cotes road bridge at reference point SK 5540 2061.

The parishes of Burton-on-the-Wolds and Barrow-upon-Soar in the borough of Charnwood, the parishes of Prestwold and Walton-on-the-Wolds and the Loughborough area—

Work No. 31 A widening and deepening of the river channel and raising of bank levels commencing at reference point SK 5531 2032 and terminating at reference point SK 5657 1820.

The parish of Barrow-upon-Soar—

Work No. 32 A diversion of the river commencing at reference point SK 5657 1818 and terminating at reference point SK 5657 1808 and the provision of control gates at reference point SK 5658 1820 and an access road commencing at reference point SK 5701 1833 and terminating at reference point SK 5659 1820.

The parish of Quorndon in the borough of Charnwood and the parish of Barrow-upon-Soar—

Work No. 32A A gauging device including necessary instrumentation and a gauge house commencing at reference point SK 5631 1792 and terminating at reference point SK 5667 1812.

The parish of Mountsorrel in the borough of Charnwood and the parishes of Barrow-upon-Soar and Quorndon—

Work No. 33 A widening and deepening of the river channel and raising of bank levels commencing at reference point SK 5657 1808 and terminating at reference point SK 5777 1664.

The parish of Barrow-upon-Soar—

Work No. 33A An underpinning of Barrow road bridge at reference point SK 5726 1736.

The parish of Quorndon—

Work No. 34 A flood defence commencing at reference point SK 5672 1716 and terminating at reference point SK 5659 1638, including a diversion of Quorn Brook commencing at reference point SK 5639 1648 and terminating at reference point SK 5644 1646.

The parishes of Barrow-upon-Soar and Mountsorrel—

Work No. 35 A raising of the crest level of Barrow Weir at reference point SK 5785 1679 including a stank across the approach channel to the old mill weirs.

Work No. 36 A river channel and flood embankments commencing at reference point SK 5778 1666 and terminating at reference point SK 5830 1630.

The parish of Mountsorrel—

Work No. 37 An access bridge over Work No. 36 at reference point SK 5805 1655 and an extension of Betty Henser's Lane to the said bridge.

The parishes of Barrow-upon-Soar and Mountsorrel—

Work No. 38 A navigation aqueduct over Work No. 36 at reference point SK 5826 1640.

The parish of Sileby in the borough of Charnwood and the parish of Barrow-upon-Soar—

Work No. 39 A widening and deepening of the river channel and raising of bank levels commencing at reference point SK 5830 1630 and terminating at reference point SK 5874 1537.

The parish of Barrow-upon-Soar—

Work No. 40 A stank at reference point SK 5833 1636.

Work No. 41 An access bridge at reference point SK 5837 1623.

Work No. 42 Removal of existing railway bridge authorised by The Mountsorrel Railway Act 1859 at reference point SK 5848 1608 and provision of pedes-

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trian access alongside the mineral conveyor bridge including an increase in span of the said bridge.

Work No. 43 An access bridge at reference point SK 5853 1590.

The parish of Sileby—

Work No. 44 A bridge with footpath on the road (B674) at reference point SK 5877 1550.

Work No. 45 A river channel commencing at reference point SK 5874 1537 and terminating at reference point SK 5873 1533.

The parish of Rothley in the borough of Charnwood and the parish of Mountsorrel—

Work No. 46 A diversion of the navigation commencing at reference point SK 5861 1531 and terminating at reference point SK 5914 1491.

The parishes of Sileby and Mountsorrel—

Work No. 47 A stank at reference point SK 5870 1533.

The parishes of Sileby and Rothley—

Work No. 48 A stank at reference point SK 5915 1495.

The parishes of Mountsorrel and Rothley—

Work No. 49 A stank at reference point SK 5898 1491.

The parishes of Mountsorrel, Rothley and Sileby—

Work No. 50 A widening and deepening of the river channel and raising of bank levels commencing at reference point SK 5873 1533 and terminating at reference point SK 5915 1498.

The parish of Sileby—

Work No. 51 A river channel commencing at reference point SK 5915 1498 and terminating at reference point SK 5938 1471.

Work No. 52 Control gates on Work No. 51 at reference point SK 5933 1489 incorporating access bridge and re-alignment of approaches between reference point SK 5931 1486 and reference point SK 5941 1490.

Work No. 53 A diversion of Sileby Brook commencing at reference point SK 5933 1491 and terminating at reference point SK 5941 1479 including provision for carrying the access road to Sileby Mill across the diverted Sileby Brook.

The parish of Rothley—

Work No. 54 A flood defence commencing at reference point SK 5936 1472 and terminating at reference point SK 5936 1430.

The parish of Cossington in the borough of Charnwood and the parish of Sileby—

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Work No. 55 A widening and deepening of the river channel commencing at reference point SK 5938 1471 and terminating at reference point SK 5949 1299, including construction of a flood defence along the right bank.

The parish of Cossington—

Work No. 56 A flood defence commencing at reference point SK 5953 1302 and terminating at reference point SK 6024 1302.

In the city of Leicester in the county of Leicestershire—

Work No. 57 A flood defence commencing at reference point SK 5922 0750 and terminating at reference point SK 5917 0725.

Work No. 58 A flood defence commencing at reference point SK 5902 0737 and terminating at reference point SK 5900 0722.

(2) Notwithstanding anything to the contrary in this Act or shown on the deposited plans or the deposited sections, but without prejudice to the provisions of section 6 (Power to deviate) of this Act the Authority may, subject to the approval of the Minister construct the whole or any part of Works Nos. 7, 10, 14, 20, 24, 34, 35, 42, 57 and 58 within the limits of deviation in accordance with dimensions and a description other than the dimensions and descriptions shown on the deposited plans and the deposited sections or set out in subsection (1) above.

(3) (a) The Authority may lay electric lines in, on or over any highway and, with the consent of the owners and occupiers of any other land, in, on or over that land, for the purpose of—

- (i) establishing telegraphic, telephonic or other electrical communication either between any part of the undertaking of the Authority (as for the time being authorised by any enactment) and any part of the works, or between different parts of those works; or
- (ii) inspecting, maintaining, repairing, managing, working or using the works or any of them.

(b) Subsections (3), (4) and (5) of section 5 of the Third Schedule shall extend and apply to any electric lines laid under this subsection as if they were wires, posts, conductors and other apparatus laid under the said section 5 and for that purpose shall be deemed to be incorporated with this Act.

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—cont.

(4) The Authority may from time to time renew and alter any of the works described in subsection (1) above.

Subsidiary
works.

5.—(1) Subject to the provisions of this Act and within the limits of deviation shown on the deposited plans, the Authority in connection with or for the purposes of the works may—

- (a) make junctions and communications between any of those works and any watercourses and any existing streets, roads, droves, ways, bridges and footpaths;
- (b) make, provide, alter and maintain all necessary and convenient walls, banks, embankments, borrow pits, hards, moorings, boat hoists, rollers and other facilities for transporting boats, piling, fences, facilities for watering cattle and other animals, culverts, drains, intakes, syphons, watercourses, weirs, sluices, valves, mattresses, pitching, roads, droves, bridges, footpaths, and all such mains, pipes, cables, wires, meters, pumps, machinery, works and appliances as may be required;
- (c) raise, widen, lengthen, alter and reconstruct the bridges over any watercourses widened, deepened, strengthened, straightened or diverted under the powers of this Act and the approaches to such bridges and strengthen, underpin and deepen the piers, arches and other supports and the foundations thereof without acquiring the said bridges or any interest therein;
- (d) stop up and discontinue so much of the watercourses shown on the deposited plans as will be rendered unnecessary by reason of the execution of the works;
- (e) dispose of spoil or other material excavated in the execution of the works;
- (f) execute any works or abstract water for the protection of any adjoining lands, buildings or structures;
- (g) remove, alter, divert or stop up any drain, sewer or watercourse, the Authority providing a proper substitute before interrupting the flow of sewage in any drain or sewer or water in any watercourse;
- (h) fell, lop or cut and remove any tree, bush, shrub or other vegetation; and
- (i) alter any mains, pipes, wires and other works and apparatus for conveying or transmitting water, gas, electricity or petroleum (as defined in the Petroleum (Consolidation) Act 1928).

1928 c. 32.

(2) In the exercise of the powers conferred by this and the last foregoing section, the Authority shall cause as little detriment and inconvenience to any person as circumstances admit and shall pay compensation to all persons for any damage sustained by

them by reason of the exercise by the Authority of such powers. Any question as to the amount of the compensation to be so paid shall be determined by the tribunal.

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(3) The powers conferred by this and the last foregoing section of this Act in so far as they authorise the carrying out of any works in, on, over or under any highway shall not be exercised by the Authority without the consent of the highway authority having powers in relation thereto, which consent shall not be unreasonably withheld but may be given subject to such reasonable conditions (other than a monetary payment as the consideration for the grant of the consent) as the highway authority may require, and any question whether such consent is unreasonably withheld or any conditions so imposed are unreasonable shall be determined by arbitration:

Provided that such consent shall not be necessary where consent for the carrying out of the works is required by the Public Utilities Street Works Act 1950.

1950 c. 39.

(4) Any electrical works or equipment constructed, erected, laid down, maintained, worked or used pursuant to the powers conferred by this section shall be so constructed, erected or laid down and so maintained, worked and used as to prevent interference (whether by induction or otherwise) with any telegraphic line belonging to or used by British Telecommunications or with telecommunication by means of any such line.

6. The Authority in constructing the works may deviate laterally from the lines or situations of the works as shown on the deposited plans to any extent not exceeding the limits of deviation shown on those plans and may deviate vertically from the levels shown on the deposited sections to any extent upwards or downwards:

Power to deviate.

Provided that no part of the embankments comprised in or forming part of Works Nos. 1, 1A, 1B, 2, 10, 14, 19, 20, 21, 23A, 24, 27, 27A, 28A, 34, 54, 55, 56, 57 and 58 shall be constructed at a greater height above the general surface of the ground than that shown on the deposited sections and 1 metre in addition thereto.

7.—(1) In this section—

“ the signed plan ” means the plan six copies of which have been signed by the Rt. Hon. Ernest Armstrong the Chairman of the Committee of the House of Commons to whom the Bill for this Act was referred and deposited respectively in the office of the Clerk of the Parliaments, House of Lords, in the Private Bill Office of the House

As to construction of Work No. 24.

PART II
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of Commons, with the chief executive of the Nottinghamshire County Council, with the chief executive of the Rushcliffe Borough Council, with the chairman of the Normanton-on-Soar Parish Council and with the chief executive of the Authority;

“ the specified work ” means so much of Work No. 24 as is to be constructed between reference point SK 5145 2323 and reference point SK 5155 2315.

(2) Notwithstanding anything in this Act or shown on the deposited plans the Authority shall not construct any part of the specified work north-east of the line shown drawn between the points marked “A” and “B” on the signed plan.

(3) A person with whom a copy of the signed plan is deposited under this section shall keep it with so much of the deposited plans as relates to Work No. 24.

Alterations to
main river.

8.—(1) Upon completion of the diversions of the river specified in Works Nos. 22, 30, 32, 36, 46 and 51 the new channel of the river for the lengths of the diversions shall be treated as part of the main river of the Authority for the purposes of the Act of 1976.

(2) Upon completion of the diversions of the river specified in Works Nos. 5, 7, 13, 29, 45 and 53 the new channel of the river for the lengths of the diversions shall be treated as part of the main river of the Authority and the former channels of the river diverted by any of those works shall cease to be treated as part of the main river.

(3) The Authority shall from time to time send the main river map (as defined in section 9 (1) of the Act of 1976) of their area to the Minister for the purpose of its being varied to give effect to the provisions of this section.

(4) Section 9 (6) of the Act of 1976 shall not apply to the alteration of the main river map in pursuance of this section.

Certain of
works
deemed to be
constructed
under
impounding
licence.

9. Works Nos. 7, 9, 9A, 13A, 15, 17, 22, 30, 32, 35, 40, 47, 48, 49 and 52 shall be deemed to have been constructed under licences under section 36 of the Act of 1963 granted by the Secretary of State to the Authority and, except as may be otherwise provided by this Act, the provisions of the Act of 1963 relating to licences granted under section 36 of that Act shall apply to the licences deemed by this section to have been granted under that section as they apply to those so granted.

10.—(1) For the purpose of executing the works the Authority may divert the footpaths described in column (1) of Schedule 1 to this Act in the county referred to in column (2), in the borough referred to in column (3) and the parishes referred to in column (4) of the said Schedule in the manner shown on the deposited plans between the points specified in column (5) of the said Schedule as shown on the deposited plans, and subject to the provisions of this Act may stop up and cause to be discontinued as a public highway so much of each of the said footpaths as will be rendered unnecessary by the diversion thereof under the powers of this Act.

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Power to
divert
footpaths.

(2) (a) Notwithstanding anything in subsection (1) above where a footpath is diverted the existing public highway shall not be stopped up under the powers of this section until the highway authority concerned are satisfied that the new footpath to be substituted therefor has been completed in accordance with their reasonable requirements and is open for public use or, in the case of any difference between the Authority and the highway authority as to whether the said requirements have been complied with or as to their reasonableness, until the matter in dispute has been referred to and determined by arbitration:

Provided that the Authority shall not be required under this section to construct or complete any new footpath to a greater width or better standard than the footpath for which such new footpath is substituted.

(b) Before referring a matter to arbitration under paragraph (a) above, the Authority shall give to the highway authority seven days' notice of their intention so to do.

(3) As from the date of completion to the satisfaction of the highway authority of any such diverted footpath or as from the date of the determination by arbitration of any difference under subsection (2) above (as the case may be), all rights of way over or along the portion of the footpath so stopped up shall be extinguished and the Authority may appropriate and use, for the purposes of the works authorised by this Act, the site and soil thereof so far as they are owners of the land on both sides thereof.

(4) Any footpath diverted under the powers of this Act shall be repairable by the authority or person by which or by whom it was repairable before its diversion and be subject to the same public rights of way as were exercisable over the footpath before its diversion.

11.—(1) Subject to the provisions of this Act, the Authority during and for the purpose of the execution of any of the works may temporarily stop up and divert and interfere with any

Temporary
stoppage of
watercourses,
roads,
footpaths and
bridleways.

PART II
—cont.

watercourse or any road, bridleway or footpath and may for any reasonable time divert the traffic from any such road, bridleway or footpath and prevent all persons other than those bona fide going to or from any land, house or building abutting on the road, bridleway or footpath from passing along and using the same.

(2) Reasonable access shall be provided for foot-passengers with or without animals, bona fide going to or from any such land, house or building.

(3) The powers of this section shall not be exercised with reference to any road, bridleway or footpath without the consent of the highway authority having powers in relation thereto and in the case of a road, bridleway or footpath which is vested in any person other than the highway authority, that person, and any such consent may be given subject to such reasonable conditions (other than a monetary payment as the consideration for the grant of the consent) as the highway authority or other person may think fit to impose but shall not be unreasonably withheld, and any question whether any such consent is or is not unreasonably withheld or whether any conditions are or are not reasonable shall be determined by arbitration.

(4) The Authority shall not exercise the powers of this section with reference to any road unless they have given not less than fourteen days' notice in writing of their intention so to do to—

(a) the traffic commissioners in whose area the road is situate; and

(b) the operator over that road of a local service as defined in the Public Passenger Vehicles Act 1981;

1981 c. 14.

except in a case of emergency when such notice as is practicable shall be given.

(5) The powers of this section shall not be exercised with reference to any watercourse which is under the jurisdiction of an internal drainage board without the consent of the board concerned and any such consent may be given subject to such reasonable conditions (other than a monetary payment as the consideration for the grant of the consent) as the board concerned may think fit to impose but shall not be unreasonably withheld, and any question whether any such consent is or is not unreasonably withheld or whether any conditions are or are not reasonable shall be determined by the Minister.

(6) The powers of this section shall not be exercised with respect to a road so as to obstruct or interfere with the access to or exit from any station or depot of passenger road transport operators, except with their consent.

(7) The exercise of the powers conferred by this section in relation to a highway shall not affect the powers of British Telecommunications under the Telegraph Acts (as defined in section 11 of the British Telecommunications Act 1981) to maintain, inspect, repair, renew or remove telegraphic lines or to open or break up that highway for any of those purposes.

PART II
—cont.

1981 c. 38.

12. Before breaking up or otherwise interfering with any road in connection with the construction of any of the works, the Authority shall give fourteen days' notice to the chief officer of police of their intention so to do, except in a case of emergency when such notice as is practicable shall be given.

Notice to
police.

13.—(1) Subject to the provisions of this Act, the Authority may by means of the Works Nos. 1B, 4, 5, 7, 9, 9A, 13, 13A, 15, 16, 17, 22, 25, 27A, 29, 30, 30A, 32, 32A, 33A, 35, 36, 38, 40, 45, 46, 47, 48, 49, 51, 52 and 53 and any works constructed in connection therewith divert, abstract, intercept, stop up or otherwise interfere with the waters or the flow of water in the river or the navigation and of or in any other watercourse which may be intercepted by the said works or any of them.

Diversion of
flow of water
in certain
watercourses.

(2) The restriction imposed by subsection (1) of section 23 of the Act of 1963 shall not apply to abstraction of water under subsection (1) above.

14.—(1) (a) Subject to the provisions of this Act, the Authority for the purposes of improving or regulating the flow of any of the watercourses which may require improvement or regulation consequent upon the operation or maintenance of any of the works may—

Power to
Authority to
improve and
regulate
flow of
watercourses.

- (i) widen, dredge, cleanse and scour the watercourse;
- (ii) reduce or remove any shoals, shelves, banks or other accumulations therein;
- (iii) alter or remove or cause to be altered or removed any weirs, sluices or other impediments or obstructions whatsoever therein or on the banks thereof;
- (iv) alter or reconstruct any culvert or other structure therein or on the banks thereof.

(b) Any spoil or other material dredged or removed in the exercise of the powers of this subsection may be deposited on the banks of the watercourse.

(2) The Authority shall pay compensation to all persons for any damage sustained by them or liability to which they may become subject by reason of the exercise by them of the powers

PART II
—cont.

of this section. Any question as to the amount of the compensation to be so paid shall be determined by the tribunal.

(3) The powers conferred on the Authority by this section shall not be exercised in relation to a watercourse under the jurisdiction of an internal drainage board except with the consent of the board concerned and any such consent may be given subject to such reasonable terms and conditions (other than a monetary payment as the consideration for the grant of the consent) as that board may think fit but shall not be unreasonably withheld, and any question as to whether any such consent is or is not unreasonably withheld or whether any conditions are or are not reasonable shall be determined by the Minister.

Discharge of
water into
streams.

15.—(1) Subject to the provisions of this Act, for the purpose of constructing, altering, enlarging, repairing, cleaning or examining any of the works the Authority may cause the water in any such work to be discharged into any available watercourse and for that purpose may lay and maintain all necessary discharge pipes and apparatus.

(2) Except in a case of emergency the Authority shall not less than seven days before commencing to discharge water into a watercourse as aforesaid give notice of their intention to the occupier of the land on which the discharge is to be made:

Provided that whenever the Authority propose to discharge water on a number of occasions during a period, the giving by them of a general notice to that effect, accompanied by such particulars as it is reasonably practicable for them to give, shall constitute sufficient compliance by them with the provisions of this subsection.

(3) In the exercise of the powers conferred by this section the Authority shall do as little damage as may be and shall pay compensation to all persons for any damage sustained by them or liability to which they may become subject by reason of the exercise of those powers and, for the purposes of this subsection, any extra expenditure which it becomes reasonably necessary for any public authority (including any statutory undertakers) to incur for the purpose of properly discharging their statutory functions shall be deemed to be damage sustained by them. Any question as to the amount of the compensation to be so paid shall be determined by the tribunal.

(4) (a) The Authority shall take all necessary steps to secure that any water discharged by them under this section shall be as free as may be reasonably practicable from mud and silt, from solid, polluting, offensive or injurious matters and from any matter

prejudicial to fish or spawn, or to spawning beds or food of fish, and, if they fail to do so, shall be guilty of an offence.

PART II
—cont.

(b) Sections 46 and 47 of the Water Act 1945 shall apply to 1945 c. 42. any such offence as if it were an offence against that Act.

16. The Authority may enter into and carry into effect agreements or arrangements with the drainage board of any drainage district or the owners of or other persons interested in any land in or through which the works are or may be constructed or the drainage of which may be affected by the construction of the works for or with respect to the execution of any works or the doing of anything which may be rendered necessary or convenient by reason or in consequence of the exercise of the powers of this Act. Any such agreement may provide for the payment by the Authority of or the making of contributions by them towards the cost incurred or to be incurred by any such drainage board, owners or other persons in or in connection with the execution of such last-mentioned works or the doing of any such thing or the payment by the Authority of compensation for any injury suffered by such drainage board, owners or other persons by reason or in consequence of the execution by the Authority of the works of that Authority.

Agreements with owners of land and others for execution of works.

17.—(1) Subject to the provisions of this Act, the Authority may for the purposes of the works enter upon and use so much of the bed or banks of any watercourse as is within the limits of deviation of any of the works shown on the deposited plans and as may be required for those purposes, and they may also for the purposes of executing and placing temporary works and conveniences in connection with the works occupy and use temporarily so much of such bed and banks within the said limits as may be required for those purposes or any of them.

Power to use bed and banks of watercourses.

(2) The Authority shall, not less than seven days before entering upon and using the bed or banks of any watercourse as aforesaid, give notice of their intention to the occupier of the land comprising such bed or banks and shall pay compensation to all persons for any damage sustained by them or liability to which they may become subject by reason of the exercise by the Authority of the powers conferred by this section, and any question as to the amount of the compensation to be so paid shall be determined by the tribunal.

18. Notwithstanding anything to the contrary in any enactment or in any rule of law, the Authority may operate the control gates to control the flow of the river in such manner and for such periods as they think necessary or desirable—

Operation of control gates.

(a) at any time when it appears to the Authority necessary

PART II
—cont.

to prevent or alleviate or otherwise control floods or inundations;

(b) in any other case of emergency; or

(c) for the purpose of testing the control gates.

Misuse of control gates, etc.

19. Any person who without lawful authority closes or opens or attempts to close or open, the control gates or any of them or in any other way interferes, or attempts to interfere, with the control gates or the operation thereof shall be liable on summary conviction to a term of imprisonment not exceeding six months or to a fine not exceeding £500, or both, or on indictment to a term of imprisonment not exceeding five years or to a fine, or both:

Provided that a person shall not be guilty of an offence by virtue of this section as respects any act done in an emergency in order to avoid danger to any person.

Cruising waterways.

20.—(1) As from a date to be agreed between the Authority and the board (or, failing agreement, to be determined by the Secretary of State on the application of either party, after notice in writing to the other) in relation to each work mentioned in column (1) of the following table, which in the case of Work No. 7 and Work No. 46 shall not be earlier than the completion of that work and in the case of Work No. 13 shall not be earlier than three years after completion of that work, the diversion comprising or forming part of that work between the reference points mentioned in column (2) of the said table shall be deemed to be part of the navigation and part of a cruising waterway specified in Part II of Schedule 12 to the Transport Act 1968 and the channel for which that diversion is substituted shall for all purposes cease to form part of the navigation and part of a cruising waterway:—

1968 c. 73.

Work No. (1)	Reference points (2)
7	SK 4910 2930 and SK 4914 2922
13	SK 4947 2740 and SK 4939 2709
46	SK 5861 1531 and SK 5914 1491

(2) As soon as practicable after the date agreed or determined under subsection (1) above the Authority shall cause notice of that date to be published in the London Gazette and in one or more newspapers circulating in the area in which the said work is situated.

PART III
LANDS, ETC.

21.—(1) Subject to the provisions of this Act, the Authority may enter upon, take and use such of the lands delineated on the deposited plans and described in the deposited book of reference as they may require for the purposes of—

Power to
acquire and
dispose of
lands.

(a) the works;

(b) obtaining materials for the construction of the works, or depositing spoil or other material excavated during the construction thereof;

(c) obtaining access to the works;

or otherwise for the purposes of this Act or other purposes connected therewith.

(2) (a) The powers of the Authority for the compulsory acquisition of lands under this section shall not be exercised after 31st December 1985.

(b) The power to acquire compulsorily any land shall for the purposes of this subsection be deemed to have been exercised if before 31st December 1985 notice to treat has been served in respect of that land.

(3) Upon completion of any of the works the Authority may with the agreement of the board convey to the board on such terms and conditions as may be so agreed the whole or any part of the land on which the work has been constructed and as from the date of vesting in the board any land so conveyed shall for all purposes form part of the undertaking of the board.

22.—(1) If the deposited plans or the deposited book of reference are inaccurate in their description of any land, or in their statement or description of the ownership or occupation of any land, the Authority after giving not less than ten days' notice to the owner, lessee and occupier of the land in question may apply to two justices having jurisdiction in the place where the land is situated for the correction thereof.

Correction of
errors in
deposited
plans and
book of
reference.

(2) If on any such application it appears to the justices that the misstatement or wrong description arose from mistake, the justices shall certify the fact accordingly and shall in their certificate state in what respect any matter is misstated or wrongly described.

(3) The certificate shall be deposited in the office of the Clerk of the Parliaments, and a copy thereof in the Private Bill Office, House of Commons, and with the chief executive of the Leicestershire County Council or the Nottinghamshire County

PART III
—*cont.*

Council (as the case may require), and a copy thereof shall be deposited with every clerk of a local authority and chairman of a parish council or parish meeting with whom a copy of the deposited plans (or so much thereof as includes the land to which the certificate relates) has been deposited in accordance with the Standing Orders of the Houses of Parliament or who has the custody of any copy so deposited, and thereupon the deposited plans and the deposited book of reference shall be deemed to be corrected according to the certificate and it shall be lawful for the Authority to take the land and execute the works in accordance with the certificate.

(4) A person with whom a copy of the certificate is deposited under this section shall keep it with the other documents to which it relates.

**Acquisition
of part only
of certain
properties.**

1973 c. 26.

23.—(1) Where a copy of this section is endorsed on, or annexed to, a notice to treat served under the Act of 1965, as applied by this Act, the following provisions of this section shall apply to the land subject to the notice instead of subsection (1) of section 8 of that Act and, in the case of agricultural land, instead of sections 53 to 56 of the Land Compensation Act 1973.

(2) Where the land subject to the notice is part only of a house, building or factory, or part only of land consisting of a house, together with any park or garden belonging thereto, or part only of an agricultural unit, then, if the person on whom the notice is served, within six weeks after the day on which the notice is served on him, serves on the Authority a counter-notice objecting to the sale of the part and stating that he is willing and able to sell the whole (hereinafter in this section referred to as “the land subject to the counter-notice”), the question whether he shall be required to sell the part shall, unless the Authority agree to take the land subject to the counter-notice, be referred to the tribunal.

(3) If the said person does not serve such a counter-notice as aforesaid within six weeks after the day on which the notice to treat is served on him, or if on such a reference to the tribunal the tribunal determine that the part subject to the notice to treat can be taken without material detriment to the remainder of the land subject to the counter-notice, or, in the case of part of land consisting of a house together with a park or garden belonging thereto, without material detriment to the remainder of the land subject to the counter-notice and without seriously affecting the amenity and convenience of the house, the said person shall be required to sell the part.

(4) If on such a reference to the tribunal the tribunal determine that part only of the land subject to the notice to treat can be taken without material detriment to the remainder of the land subject

to the counter-notice, or, as the case may be, without material detriment to the remainder of the land subject to the counter-notice and without seriously affecting the amenity and convenience of the house, the notice to treat shall be deemed to be a notice to treat for that part.

PART III
—cont.

(5) If on such a reference to the tribunal the tribunal determine that the land subject to the notice to treat cannot be taken without material detriment to the remainder of the land subject to the counter-notice but that the material detriment is confined to a part of the remainder of the land subject to the counter-notice, the notice to treat shall be deemed to be a notice to treat for the land to which the material detriment is confined in addition to the land already subject to the notice, whether or not the additional land is land which the Authority are authorised to acquire compulsorily under this Act.

(6) If the Authority agree to take the land subject to the counter-notice, or if the tribunal determine that—

- (a) none of the land subject to the notice to treat can be taken without material detriment to the remainder of the land subject to the counter-notice or, as the case may be, without material detriment to the remainder of the land subject to the counter-notice and without seriously affecting the amenity and convenience of the house; and
- (b) the material detriment is not confined to a part of the land subject to the counter-notice;

the notice to treat shall be deemed to be a notice to treat for the land subject to the counter-notice whether or not the whole of that land is land which the Authority are authorised to acquire compulsorily under this Act.

(7) In any case where, by virtue of a determination by the tribunal under subsection (4), (5) or (6) above, a notice to treat is deemed to be a notice to treat for part of the land specified in the notice or for more land than is specified in the notice, the Authority may, within six weeks after the tribunal make their determination, withdraw the notice to treat, and if they do so shall pay to the said person compensation for any loss or expense occasioned to him by the giving and withdrawal of the notice, to be determined in default of agreement by the tribunal.

(8) Where a person is under this section required to sell part only of a house, building or factory, or of land consisting of a house together with any park or garden belonging thereto, or of an agricultural unit, the Authority shall pay him compensation for any loss sustained by him due to the severance of that part in addition to the value of his interest therein.

PART III

—*cont.*

1947 c. 48.

(9) In this section “ agricultural land ” and “ agricultural unit ” have the meanings assigned to those expressions by section 109 of the Agriculture Act 1947.

Power to
acquire
easements
only.

24.—(1) The Authority may, instead of acquiring any land which they are authorised to acquire compulsorily under this Act, acquire compulsorily such easements or rights over or in the land as they may require for any purpose for which they are authorised to acquire the land.

(2) Such rights may consist of or include rights restrictive of the user of the land.

(3) Any easement or right relating to land which the Authority are authorised to acquire compulsorily shall, as respects the burden of such easement or right, run with the land and be enforceable by the Authority against the estate and interest of every person for whose use or in respect whereof compensation or (where the easement or right is acquired by agreement) the agreed purchase price is paid and all persons deriving title by, through or under that person without any limit of time and as though, as respects the benefit of such easement or right, the Authority had at all material times been the absolute owners in possession of ascertained land adjacent to the land subject to the burden of such easement or right and capable of being benefited thereby and the easement or right were created or imposed by a grant or covenant expressed to be for the benefit of that adjacent land.

1975 c. 76.

(4) Any easement or right acquired under this section, whether compulsorily or by agreement, shall be a local land charge for the purpose of the Local Land Charges Act 1975.

1972 c. 61.

(5) (a) No easement or right acquired under this section shall be registrable under the Land Charges Act 1972 or constitute a land charge of any of the classes described in that Act.

1925 c. 21.

(b) Every such easement or right shall be an overriding interest under paragraph (ii) of subsection (1) of section 70 of the Land Registration Act 1925.

(6) (a) The Authority may give notice to treat in respect of any such easement or right, describing the nature thereof; and the Act of 1965, as applied by this Act, shall have effect with the modifications necessary to make it apply to the compulsory acquisition of easements or rights under subsection (1) above as they apply to the compulsory acquisition of land so that, in appropriate contexts, references in that Act to land are read as referring, or as including references, to the easements or

rights or to land over which the easements or rights are or are to be exercisable, according to the requirements of the particular context.

PART III
—cont.

(b) Without prejudice to the generality of paragraph (a) above, in relation to the purchase of easements or rights in pursuance of subsection (1) above—

- (i) Part I of the Act of 1965 shall have effect with the modifications specified in Schedule 2 to this Act;
- (ii) the enactments relating to compensation for the compulsory purchase of land shall apply with the necessary modifications as they apply to such compensation.

(c) A notice to treat given under this section shall be endorsed with notice of the effect of section 8 of the Act of 1965 as applied by paragraph 2 of Schedule 2 to this Act.

(7) The Authority may, with or without consideration, release either wholly or partly any easement or right acquired under this section.

(8) Where the Authority have acquired an easement or right only over or in any land under this section—

- (a) they shall not be required or, except by agreement or during the execution of the works authorised by this Act, entitled to fence off or sever that land from the adjoining land;
- (b) the owner or occupier of the land for the time being shall, subject to the easement or right, have the same right to use the land as if this section had not been enacted.

25. In determining a question with respect to compensation claimed in consequence of the compulsory acquisition of land under this Act, the tribunal shall not take into account any interest in land, or any enhancement of the value of any interest in land, by reason of any building erected, works executed, or improvement or alteration made, whether on the land acquired or on any other land with which the claimant is, or was, at the time of the erecting, executing or making of the building, works, improvement or alteration, directly or indirectly concerned if the tribunal are satisfied that the creation of the interest, the erection of the building, the execution of the works or the making of the improvement or alteration (as the case may be) was not reasonably necessary and was undertaken with a view to obtaining compensation or increased compensation.

Disregard of recent improvements and interests.

26.—(1) All private rights of way over any land which may be acquired compulsorily under this Act shall be extinguished on the acquisition of the land, whether compulsorily or by agreement, or on the entry on the land in pursuance of subsection (1) of

Extinction of private rights of way.

PART III
—*cont.*

section 11 of the Act of 1965, as applied by this Act, whichever is the sooner.

(2) Any person who suffers loss by the extinguishment of any right under this section shall be entitled to be paid by the Authority compensation, to be determined, in case of dispute, in accordance with the provisions of the Act of 1961.

Grant of easements by persons under disability.

27.—(1) Any person empowered by the Act of 1965, as applied by this Act, to sell and convey or release lands may, if he thinks fit, subject to the provisions of the Act of 1965, grant to the Authority any easement or right required for the purposes of this Act over or in the lands, not being an easement or right of water in which some person other than the grantor has an interest.

(2) The provisions of the Act of 1965 with respect to lands and rent-charges, so far as they are applicable, shall extend and apply to any such grant and to any such easement or right as aforesaid.

Provision of substituted sites.

28. The powers of the Authority to purchase land by agreement shall include power to purchase land by agreement for the purpose of providing substituted sites or facilities for the owners and occupiers of land which may be acquired under this Act.

Agreements with adjoining owners.

29.—(1) The Authority may enter into and carry into effect agreements with any person being the owner of, or interested in, any land adjoining any portion of the works, or of land which may be acquired by the Authority under this Act, with respect to the sale by the Authority to him (subject to such reservations, restrictions or other provisions as to the Authority seem fit) of any land not required for the works.

(2) The Authority may accept as satisfaction for the whole or any part of the consideration for any such sale the grant by the purchaser of any land required by the Authority for the purposes of this Act or any easement or right so required.

Power to reinstate owners or occupiers of property.

30.—(1) The Authority may enter into, and carry into effect, an agreement or arrangement with the owner or occupier of any land acquired or to be acquired under this Act by the Authority with respect to his reinstatement.

(2) Any such agreement may provide for the exchange of land; and for that purpose the Authority may pay or receive money for equality of exchange.

Application of enactments relating to land drainage.

31. It is hereby declared that the works, being works to be constructed by the Authority in the performance of their land

drainage functions, are drainage works and that in constructing those works and in the exercise of the other powers of this Act, the Authority shall have, in addition to the powers of this Act, all such powers as are conferred on them by or under section 17 of the Act of 1976 in relation to drainage works.

PART III
—cont.

32. In subsection (6) of section 90 of the Act of 1976—

Grants by
Minister
towards
expenditure
of Authority.

(a) the reference to functions under paragraph (b) or paragraph (c) of subsection (1) of section 17 of the Act of 1976 shall include a reference to functions of a similar nature under this Act; and

(b) in relation to that subsection as it applies by virtue of paragraph (a) of this section—

(i) the reference in paragraph (a) to sections 65 and 66 of the Act of 1963 shall be construed as including a reference to this Part of this Act; and

(ii) the reference in paragraph (c) to section 17 (5) of the Act of 1976 shall be construed as including a reference to section 5 (Subsidiary works), section 14 (Power to Authority to improve and regulate flow of watercourses), section 15 (Discharge of water into streams), section 16 (Agreements with owners of land and others for execution of works) and section 17 (Power to use bed and banks of watercourses) of this Act.

33. Section 120 of the Act of 1963 shall apply to the service of documents required or authorised by this Act to be given to or served on any person as it applies to the service of documents required or authorised by that Act to be given to or served on any person.

PART IV

MISCELLANEOUS

34.—(1) In this Part of this Act, unless the context otherwise requires, any expression used in Part II of the Public Health Act 1936 has the same meaning as in that Part of that Act; and—

1936 c. 49.

“local authority” means a county council or a district council;

“pipe” includes a tunnel;

“sewage disposal main” means a pipe or system of pipes (together with any pumps or other machinery or apparatus associated therewith) for the conveyance of the residue of sewage treated in sewage disposal works

PART IV
—cont.

including final effluent or the products of dewatering or incineration of such residue, or partly for any of those purposes and partly for the conveyance of trade effluent or the residue thereof; and “apparatus” includes any works constructed for the accommodation of apparatus; “trade effluent” has the same meaning as in the Control of Pollution Act 1974.

1974 c. 40.

(2) For the avoidance of doubt—

(a) the expression “sewage disposal main” does not include sludge storage works, being works provided, or to be provided, for the storage of such sewage treatment residues as are referred to in the definition of that expression in subsection (1) above; and

(b) a sewage disposal main is not a public sewer as defined in section 343 of the Public Health Act 1936.

1936 c. 49.

Provision and
maintenance of
sewage
disposal mains.

35.—(1) The Authority may, under and in accordance with the following provisions of this section, provide and maintain sewage disposal mains.

(2) The following enactments shall apply in relation to sewage disposal mains provided, or to be provided, by the Authority under this section as they apply in relation to public or other sewers:—

(a) sections 15, 30 and 31 of the Public Health Act 1936 and so much of Part XII of that Act as relates to those enactments;

(b) sections 25 and 32 (1) (a) of the Public Health Act 1936 and so much of Part XII of that Act as relates to those enactments;

1973 c. 37.

(c) section 14 (5) to (7) of the Water Act 1973.

(3) (a) Before constructing, diverting or closing a sewage disposal main in the area of a county council the Authority shall consult the county council.

(b) Upon consultation with any local authority in pursuance of paragraph (a) above or section 14 (5) of the Water Act 1973, as applied in relation to any sewage disposal main to be provided by the Authority under this section, the Authority shall submit to that local authority a plan showing the route of the proposed sewage disposal main and such particulars of the sewage disposal main as shall be reasonably required.

(c) If, within twenty-eight days from the delivery to a local authority of a plan under paragraph (b) above, the local authority serve upon the Authority notice of their objection to the proposed sewage disposal main, or any part thereof, the Authority shall not

proceed with the provision of that sewage disposal main, or the part of that sewage disposal main to which the objection relates, as the case may be, unless the objection is withdrawn or the Secretary of State, after giving to the Authority and the local authority an opportunity of appearing before, and being heard by, a person appointed by the Secretary of State, has approved the proposed sewage disposal main, or that part thereof.

PART IV
—cont.

(d) The approval by the Secretary of State of a proposed sewage disposal main, or any part thereof, under paragraph (c) above may be given with or without modification of the proposals submitted by the Authority to the local authority.

(4) The Public Utilities Street Works Act 1950 shall have effect 1950 c. 39. in relation to sewage disposal mains provided, or to be provided, under this section as it has effect in relation to public sewers.

(5) Except in so far as the Pipe-lines Act 1962 applies to any 1962 c. 58. pipeline which, or the right to use which, may be acquired under this section for the provision of sewage disposal mains, that Act shall not apply to sewage disposal mains provided, or to be provided, under this section.

36.—(1) The Authority may permit the discharge of trade effluent, or the residue of trade effluent, into any sewage disposal main provided, or to be provided, by them subject to such terms and conditions (including the payment of charges for the reception of the trade effluent or residue thereof into the sewage disposal main) as may be determined by the Authority. Conveyance of trade effluents.

(2) Nothing in subsection (1) above shall be construed as entitling any person to discharge trade effluent or the residue of trade effluent into any sewage disposal main provided, or to be provided, by the Authority.

37. In their application to development consisting of or Construction including the construction by the Authority of any such sludge of sludge storage works as are mentioned in subsection (2) of section 34 storage works. (Interpretation of Part IV) of this Act, not being development by the Authority of operational land held for the purposes of sewage disposal works, Article 3 of, and Classes XVI and XVII in Schedule 1 to, the Town and Country Planning General Development Order 1977 (planning permission for development S.I. 1977/289. by water authorities or for sewerage and sewage disposal) shall have effect as if the construction of such sludge storage works (whether or not above ground level) were excepted from the development therein described.

PART IV
—cont.

Power to
carry out trial
borings, etc.

38.—(1) (a) The Secretary of State may on the application of the Authority authorise them—

- (i) to place and leave on or in any land any apparatus for use in connection with any survey of that or any other land (whether from the air or on the ground) and to remove such apparatus; and
- (ii) to search and bore on or in any land for the purpose of ascertaining the nature of the subsoil or the presence of water therein or the quantity or quality of such water:

Provided that notice of any such application shall be given by the Authority to the owner and occupier of the land and to the British Gas Corporation.

(b) For the purposes of this subsection where the surface of any land (whether it is above or below the surface of any adjoining land) has been raised by the deposit thereon of refuse or waste or other materials, any material lying below the surface as so raised shall be deemed to be part of the subsoil of that land.

(2) Before giving his authority the Secretary of State shall consider any representations made to him by the owner or occupier of the land within fourteen days after the receipt of the notice given to him under the proviso to paragraph (a) of subsection (1) above, and, unless the representations are disposed of by agreement between the Authority and the owner or occupier, shall either—

- (a) cause a local inquiry to be held; or
- (b) afford to the owner or occupier and to the Authority an opportunity of appearing before and being heard by a person appointed by the Secretary of State for the purpose.

(3) (a) Paragraph (b) of subsection (1) of section 111 of the Act of 1963 in its application to the Authority shall have effect as if the power thereby conferred to enter upon and survey land included a power to exercise the powers conferred by subsection (1) of this section.

(b) Section 112 of the Act of 1963 in its application to the Authority shall have effect as if references therein to section 111 of that Act were references to that section as extended by paragraph (a) of this subsection.

(4) Section 112 of the Act of 1976 shall have effect in relation to the exercise by the Authority of the powers of this section as it has effect in relation to the exercise of the powers conferred by any enactment contained in that Act.

Flood
prevention.

39.—(1) If the Authority determine that any building, wharf or other structure forms part of or makes a contribution to the efficiency of the defences of any part of their area against flooding

they may serve a notice (in this section referred to as “a flood prevention notice”) upon the occupier of such building, wharf or other structure designating such building, wharf or other structure as a structure to which this section applies (hereinafter in this section referred to as a “designated structure”) and such notice shall be in the form set out in Schedule 3 to this Act or in a form to the like effect.

(2) (a) Any person on whom a flood prevention notice has been served may, within twenty-eight days after the receipt of the notice, object to the notice on the grounds that the designated structure in respect of which the notice was served does not form a part of or (as the case may be) does not make a contribution to the efficiency of the defences of any part of the area of the Authority against flooding and, unless the notice is withdrawn, the objection shall be referred to and determined by arbitration.

(b) The arbitrator may confirm, vary or rescind the notice and if he varies the notice, the notice, as so varied, shall be deemed to be the notice served on the occupier under subsection (1) above.

(3) (a) An occupier of a designated structure shall not begin to alter, demolish or otherwise interfere with the structure in such a manner as would or might impair the effectiveness of that structure as a structure forming part of or making a contribution to the efficiency of the defences of the area against flooding unless, not less than twenty-eight days before doing so, he serves on the Authority a notice (in this section referred to as a “works notice”) describing the operations he is proposing to carry out in relation to the designated structure and giving particulars (including, where necessary, a plan and section) of any works proposed to be carried out.

(b) The Authority may serve a counter-notice prohibiting the carrying out of all or some of the operations described in the works notice for such period not exceeding six months as may be specified in the counter-notice.

(c) A counter-notice shall be served within twenty-eight days from the date of service on the Authority of a works notice and, if no counter-notice is served within that period or if the counter-notice is subsequently withdrawn, the occupier of the designated structure in respect of which the works notice has been served may carry out the operations described in the works notice or, as the case may be, those to which the counter-notice relates.

(4) (a) The Authority may on any land on which a designated structure is situated erect and thereafter maintain, repair or replace one or more notices of such size or type and in such position or positions and giving such information as in the opinion of the Authority will draw to the notice of persons

PART IV
—cont.

concerned with the designated structure the fact that a flood prevention notice is in force in respect of that structure.

(b) Subsection (1) of section 111 of the Act of 1963 in its application to the Authority shall have effect as if the power thereby conferred to enter upon and survey land included a power to exercise the powers conferred by paragraph (a) of this subsection, but the Authority shall not enter upon such land for the purpose of erecting a notice until the flood prevention notice has come into effect and unless not less than three days' notice has been given to the occupier of the designated structure.

(c) Section 112 of the Act of 1963 in its application to the Authority shall have effect as if references therein to section 111 of that Act were references to that section as extended by paragraph (b) of this subsection.

(5) Not less than twenty-eight days before in any case, in respect of any structure to which this subsection applies, serving a flood prevention notice pursuant to subsection (1) above, the Authority shall consult the navigation authority, harbour authority or conservancy authority concerned; and if (on so consulting prior to serving a flood prevention notice) the Authority are so required by such navigation authority, harbour authority or conservancy authority, the Authority shall also consult that authority before thereafter in respect of that structure—

(a) serving any counter-notice pursuant to subsection (3) (b) above; or

(b) erecting any notice pursuant to subsection (4) (a) above.

This subsection applies to any building, wharf or other structure occupied by, or lying wholly or partly within the jurisdiction of, a navigation authority, harbour authority or conservancy authority.

(6) A flood prevention notice given under this section shall be a local land charge and where such a notice has been varied or rescinded by an arbitrator under subsection (2) (b) above, the Authority shall within seven days of the receipt of the arbitrator's award send a copy of the award to the registering authority, who shall make an appropriate alteration in the register.

(7) Any person who—

(a) carries out, or causes or permits to be carried out, operations in relation to a designated structure in respect of which a works notice is required by paragraph (a) of subsection (3) above without serving such a notice on the Authority, or before the expiration of twenty-eight days from the service of a works notice, or during the time when a counter-notice is in force, shall be guilty of an offence and liable on summary conviction to a fine not exceeding £500, or on conviction on indictment to a fine; and if the offence is continued after conviction

he shall be guilty of a further offence and liable on summary conviction to a fine not exceeding £50 for each day on which the offence is without reasonable excuse continued, or on conviction on indictment to a fine;

- (b) intentionally obstructs members or officers of the Authority in the exercise of any of the powers of the Authority under subsection (4) above, or without reasonable excuse removes or obstructs such a notice as is referred to in that subsection, shall be guilty of an offence and shall be liable on summary conviction to a fine not exceeding £200:

Provided that a person shall not be guilty of an offence by virtue of paragraph (a) of this subsection as respects any operation if the operation is carried out, or is caused or permitted to be carried out, in an emergency in order to avoid danger to any person and, as soon as reasonably practicable after the operation is carried out, particulars of the operation are furnished to the Authority.

(8) Where a building, wharf or other structure is unoccupied, the owner thereof shall be deemed, for the purposes of this section, to be the occupier.

40.—(1) (a) Every undertaking given to the Authority by the owner of a legal estate in land (in this section referred to as “the owner”) and every agreement made between the Authority and the owner, being an undertaking or agreement—

Undertakings and agreements binding successive owners.

- (i) given or made in connection with the land; and
- (ii) expressed to be given or made in pursuance of this section; and
- (iii) defining that land as land the legal estate in which at the date of execution is vested in the owner;

shall be binding upon the owner and all persons deriving title by, through or under him.

(b) An undertaking or agreement under this section shall be a local land charge.

(2) Without prejudice to the generality of subsection (1) above it is hereby declared that an undertaking or agreement made binding by that subsection may consist of or include provision—

- (a) for covenants by the owner to carry out any works or do anything on or in relation to the land in question (including the making of any payment of a sum or sums of money);
- (b) whereby the owner for valuable consideration agrees not to exercise a right conferred by any enactment.

PART IV
—cont.

but nothing in paragraph (b) above shall make binding an agreement not to exercise a right conferred by an enactment where the enactment provides (in whatever terms) that any such agreement shall be void or unenforceable.

(3) Any person against whom such an undertaking or agreement is enforceable shall be entitled to require a copy of it from the Authority.

Power to obtain particulars of persons interested in land.

41.—(1) Where, with a view to performing a function conferred on them by any enactment, the Authority consider that they ought to have information connected with any land, the Authority may serve on one or more of the following persons, namely:—

- (a) the occupier of the land; and
- (b) any person who has an interest in the land either as freeholder, mortgagee or lessee or who directly or indirectly receives rent for the land; and
- (c) any person who, in pursuance of an agreement between himself and a person interested in the land, is authorised to manage the land or to arrange for the letting of it;

a notice specifying the land and the function and the enactment which confers the function and requiring the recipient of the notice to furnish in writing to the Authority, within a period specified in the notice (which shall not be less than fourteen days beginning with the day on which the notice is served), the nature of his interest in the land and the name and address of each person whom the recipient of the notice believes is the occupier of the land and of each person whom he believes is, as respects the land, such a person as is mentioned in paragraphs (b) and (c) of this subsection.

(2) A person who—

- (a) without reasonable excuse fails to comply with the requirements of a notice served on him in pursuance of subsection (1) above; or
- (b) in furnishing any information in compliance with such a notice makes a statement which he knows to be false in a material particular or recklessly makes a statement which is false in a material particular;

shall be guilty of an offence and liable on summary conviction to a fine not exceeding £200.

Protection of members and officers of Authority from personal liability.
1875 c. 55.

42. Section 265 of the Public Health Act 1875 (protection from personal liability of members and officers of certain authorities when acting under the direction of the authority) shall apply to the Authority as if—

- (a) references to a local authority were references to the Authority or to a committee of the Authority;

- (b) for the words “for the purpose of executing this Act” there were substituted the words “for the purpose of carrying out any of the functions of the Authority except functions under the Control of Pollution Act 1974”; and 1974 c. 40.
- (c) for the words “out of the fund or rate applicable by such authority to the general purposes of this Act” there were substituted the words “by the Authority”.

PART IV
—cont.

43.—(1) Section 76 of the Act of 1963 shall in its application to the Authority have effect as if—

Extension of
section 76 of
Act of 1963.

(a) in subsection (1)—

(i) after “present in” there were inserted “or is likely to enter”;

(ii) after “entered” there were inserted “or is likely to enter”;

(iii) for the words “either or both” there were substituted “any”; and

(iv) after paragraph (b) there were inserted—
“and

(c) preventing that matter from reaching the inland water”;

(b) after subsection (2) there were inserted—

“(2A) Any expenses reasonably incurred by the Authority in taking action under subsection (1) of this section may be recovered from any person responsible for the accident or other unforeseen act or event.”.

(2) (a) Subject to the following provisions of this subsection, this section shall cease to have effect on 31st December 1984;

(b) The Secretary of State may on the application of the Authority from time to time by order made by statutory instrument provide that this section is to continue in force for such period as may be specified in the order.

44. In subsection (2) of section 4 (Interpretation) of the Clywedog Reservoir Joint Authority Act 1963 for the definition of “Clywedog gauge” there shall be substituted—

Amendment of
Clywedog
Reservoir
Joint
Authority Act
1963.
1963 c. xxxi.

“ ‘Clywedog gauge’ means the automatically recording hydrometric gauge of the Severn-Trent Water Authority situate on the afon Clywedog two hundred and twenty-six metres downstream of the toe of the Clywedog Dam (part of Work No. 1) or such other gauge as may be approved by the Secretary of State;”.

PART IV
—*cont.*

Leamington
raw water.
1945 c. 42.

1843 c. lix.

45.—(1) In this section—

“ the Act of 1945 ” means the Water Act 1945;

“ the appointed day ” means the first day of the second month after the expiry of the month current at the commencement of this Act;

“ the existing raw water system ” means the raw water system authorised by the Act 6 & 7 Vict. chapter lix, including all pipes, apparatus, works and conveniences forming part thereof;

“ the Leamington undertaking ” means so much of the water undertaking of the Authority as is used for furnishing a supply of treated water to premises within the part of the district of Warwick formerly known as the borough of Royal Leamington Spa;

“ local enactment ” has the meaning given by section 59 (1) of the Act of 1945 and “ communication pipe ” and “ a supply of water for domestic purposes ” have the meanings given by section 1 (1) of the Third Schedule to that Act.

(2) Notwithstanding anything in the Third Schedule to the Act of 1945 as applied to the Leamington undertaking, in any other local enactment or in any subsisting agreement, as from the appointed day no person shall be entitled to demand or continue to receive from the Authority a supply of water from the existing raw water system.

(3) After the appointed day the Authority may discontinue the use of and abandon any part of the existing raw water system and may retain, use and appropriate for the general purposes of the Leamington undertaking any part of the said system not so abandoned.

(4) As soon as practicable after the appointed day, the Authority shall cause notice of the appointed day and of the effect of subsection (5) below to be published in one or more newspapers circulating in the part of the district of Warwick formerly known as the borough of Royal Leamington Spa and shall send a copy of the notice to all persons known to them to be supplied with water from the existing raw water system.

(5) Subject to the following provisions of this section, the Authority shall give a supply of water from the Leamington undertaking on reasonable terms and conditions to the owner or occupier of any premises who on 27th November 1981 was being supplied with water from the existing raw water system and who before or after the appointed day requests the Authority to give such a supply to those premises:

Provided that any such request shall be made to the Authority within a period of twelve months from the date upon which the supply of water to such premises from the existing raw water system was discontinued.

PART IV
—cont.

(6) Subsections (2) to (6) of section 27 of the Act of 1945 shall apply to a supply of water given under subsection (4) above as they apply to a supply of water given under the said section 27.

(7) All pipes and fittings which are necessary for the purposes of giving a supply of water to an owner or occupier of any premises in pursuance of this section shall be provided, laid, placed or fixed by and at the expense of the Authority:

Provided that all such pipes and fittings (except any communication pipe) which shall be laid, placed or fixed upon the premises of the owner or occupier by and at the expense of the Authority shall be repaired, maintained, renewed and made good by and at the expense of the owner or occupier.

(8) An owner or occupier of premises shall without making any charge therefor give the Authority access and facilities for carrying out works in pursuance of this section.

PART V GENERAL

46. For the protection of the undertakers the provisions of this section shall, unless otherwise agreed in writing between the Authority and the undertakers and except in any case in which the mutual obligation of the Authority and the undertakers are determined by Part III of the Public Utilities Street Works Act 1950, apply and have effect—

For protection of gas and electricity undertakers.

1950 c. 39.

(1) In this section unless the subject or context otherwise requires—

“adequate alternative apparatus” means alternative apparatus adequate to enable the undertakers to fulfil their statutory functions in a manner not less efficient than previously;

“apparatus” means—

(a) in the case of electricity undertakers, electric lines or works (as respectively defined in the Electric Lighting Act 1882) belonging to or maintained by or lawfully laid or erected by such undertakers; or

(b) in the case of gas undertakers any mains, pipes or other apparatus belonging to such undertakers or for the maintenance of which they are responsible;

1882 c. 56.

PART V
—cont.

and includes any structure for the lodging therein of apparatus;

“ in ” in a context referring to apparatus includes under, over, across, along or upon;

“ plan ” includes a section and description;

“ position ” includes depth;

“ specified work ” means any work or thing done under powers conferred by this Act;

“ the undertakers ” means the British Gas Corporation, the Central Electricity Generating Board and the East Midlands Electricity Board, or any of them, as the case may be:

- (2) Notwithstanding anything in this Act or shown on the deposited plans, the Authority shall not, under the powers of this Act, acquire any apparatus otherwise than by agreement:
- (3) The powers conferred on the Authority by paragraph (i) of subsection (1) of section 5 (Subsidiary works) of this Act to alter apparatus shall not be exercised in respect of any apparatus otherwise than in accordance with the provisions of this section:
- (4) If the Authority in the exercise of the powers of this Act acquire any interest in or use any land in which any apparatus is placed, that apparatus shall not be removed nor shall any right of the undertakers to use, maintain, repair, renew or inspect any apparatus in that land be extinguished until adequate alternative apparatus has been laid or constructed and is in operation to the reasonable satisfaction of the undertakers:
- (5) (a) If the Authority, for the purpose of the execution of any specified work, require the removal of any apparatus, they shall give to the undertakers written notice of such requirement with a plan of the proposed work, and if it is agreed between the Authority and the undertakers or, in default of agreement, determined by arbitration that the removal of the apparatus is reasonably required and that it should be removed the following provisions of this paragraph shall have effect;
(b) If it is agreed or determined by arbitration in accordance with sub-paragraph (a) of this paragraph that any apparatus should be removed or if in consequence of the execution of any specified work the undertakers shall reasonably require to remove any apparatus, the Authority shall, if practicable, afford to the undertakers the necessary facilities and rights for the laying or con-

struction of adequate alternative apparatus in other lands of the Authority and thereafter for the maintenance, repair, renewal and inspection of such apparatus:

PART V
—cont.

Provided that if the alternative apparatus or any part thereof is to be laid or constructed elsewhere than in other lands of the Authority and the Authority are unable to afford such facilities and rights as aforesaid the undertakers shall, on receipt of a written notice to that effect from the Authority, forthwith use their best endeavours to obtain the necessary facilities and rights:

- (6) (a) Any alternative apparatus to be laid or constructed in lands of the Authority in pursuance of paragraph (5) of this section shall be laid or constructed in such manner and in such line or situation as may be agreed between the undertakers and the Authority or, in default of agreement, settled by arbitration;
- (b) The undertakers shall, after the manner of laying or construction and the line and situation of any alternative apparatus has been agreed, or settled by arbitration as aforesaid, and after the grant to the undertakers of any such facilities and rights as are referred to in paragraph (5) of this section, proceed with all reasonable dispatch to lay or construct and bring into operation the alternative apparatus and thereafter to remove any apparatus required to be removed under the provisions of this section and, in default, the Authority may remove the apparatus:
- (7) Notwithstanding anything in paragraph (6) of this section, if the Authority give notice in writing to the undertakers that they desire themselves to execute any part of so much of the work necessary in connection with the laying or construction of the alternative apparatus or the removal of the apparatus required to be removed as will be situate in any lands of the Authority, such work, instead of being executed by the undertakers, shall be executed by the Authority with all reasonable dispatch under the superintendence, if given, and to the reasonable satisfaction of the undertakers:

Provided that nothing in this paragraph shall authorise the Authority to execute the actual placing, erection, installation, bedding, packing, removal, connection or disconnection of any apparatus or any filling around the apparatus (where the apparatus is laid in a trench) within 300 millimetres (12 inches) above the apparatus:

- (8) Where in accordance with the provisions of this section the Authority afford to the undertakers facilities and rights for the laying or construction, maintenance, repair,

PART V
—cont.

renewal and inspection in lands of the Authority of alternative apparatus in substitution for apparatus to be removed as aforesaid, those facilities and rights shall be granted upon such terms and conditions as may be agreed between the Authority and the undertakers, or, in default of agreement, determined by arbitration:

Provided that—

(a) in determining such terms and conditions as aforesaid in respect of alternative apparatus to be constructed across or through a specified work the arbitrator shall—

(i) give effect to all reasonable requirements of the Authority for ensuring the safety and efficient operation of the specified work and for securing any subsequent alterations or adaptations of the alternative apparatus which may be required to prevent interference with any such work; and

(ii) so far as it may be reasonable and practicable to do so in the circumstances of the particular case, give effect to any terms and conditions applicable to the apparatus laid or constructed through the lands of the Authority for which the alternative apparatus is to be substituted;

(b) if the facilities and rights to be afforded by the Authority in respect of any alternative apparatus, and the terms and conditions subject to which the same are to be granted, are, in the opinion of the arbitrator, less favourable on the whole to the undertakers than the facilities, rights, terms and conditions applying to the apparatus to be removed, the arbitrator shall make such provision for the payment of compensation by the Authority to the undertakers in respect thereof as shall appear to him to be reasonable having regard to all the circumstances of the particular case:

- (9) (a) Not less than twenty-eight days before commencing to execute any specified work which is near to, or is likely to affect, any apparatus the removal of which has not been required by the Authority under paragraph (5) of this section, the Authority shall submit to the undertakers a plan of the work to be executed;
- (b) Such work shall be executed only in accordance with the plan submitted as aforesaid and in accordance with such reasonable requirements as may be made by the undertakers for the alteration or otherwise for the protection of the apparatus, or for securing access thereto, and the undertakers shall be entitled by their officer to watch and inspect the execution of such work:

Provided that—

PART V
—cont.

- (i) if the undertakers, within fourteen days after the submission to them of any such plan, shall, in consequence of the work proposed by the Authority, reasonably require the removal of any apparatus and give written notice to the Authority of such requirement the foregoing provisions of this section shall apply and have effect as if the removal of such apparatus had been required by the Authority under paragraph (5) thereof; and
 - (ii) nothing in this sub-paragraph shall preclude the Authority from submitting at any time, or from time to time, but in no case less than twenty-eight days before commencing the execution of any such work, a new plan in lieu of the plan previously submitted and thereupon the provisions of this paragraph shall apply to and in respect of such new plan;
- (c) The Authority shall not be required to comply with sub-paragraph (a) of this paragraph in a case of emergency but, in such a case, they shall give to the undertakers notice and a plan of the work as soon as reasonably practicable and thereafter shall comply with sub-paragraph (b) of this paragraph so far as reasonably practicable in the circumstances:
- (10) Where any highway in which any apparatus is situated has been diverted by the Authority under the powers of section 10 (Power to divert footpaths) of this Act, the undertakers shall, notwithstanding such diversion, continue to have the same powers and rights in respect of the apparatus remaining in the land which by reason of the diversion has ceased to be a highway (not being apparatus rendered derelict or unnecessary) as they would have if it had remained a highway and no such rights shall be extinguished by virtue of the said section 10 but nothing in this paragraph shall prejudice or affect any right of the Authority or of the undertakers to require removal of such apparatus under this section:
- (11) If in consequence of the exercise of the powers of this Act the access to any apparatus is materially obstructed, the Authority shall provide an alternative means of access to such apparatus:
- (12) The Authority shall repay to the undertakers the reasonable costs, charges and expenses incurred by the undertakers in or in connection with—

PART V
—cont.

(a) the removal and relaying or replacing, alteration or protection of any apparatus or the provision and construction of any new apparatus under any of the provisions of this section;

(b) the cutting off of any apparatus from any other apparatus; and

(c) any other work or thing reasonably necessary in consequence of the exercise by the Authority of any of the powers of this Act:

1950 c. 39.

Provided that subsections (3) and (4) of section 23 of the Public Utilities Street Works Act 1950 shall so far as applicable extend and apply to any payment to be made by the Authority under this paragraph as if the Authority were the promoting authority and works hereinbefore in this paragraph mentioned were such undertakers' works as are referred to in the said subsection (3), and as if in that subsection for the words "specified as so necessary in a specification of the works settled under Part I of the Fourth Schedule to this Act or agreed so to be by the promoting authority" there were substituted the words "agreed or settled by arbitration under section 46 (For protection of gas and electricity undertakers) of the Severn-Trent Water Authority Act 1983":

- (13) If by reason or in consequence of the execution, user or failure of any of the specified works, or any subsidence resulting from any of those works, any damage to any apparatus (other than apparatus the repair of which is not reasonably necessary in view of its intended removal for the purposes of those works) or property of the undertakers or any interruption in the supply of gas or electricity (as the case may be) by the undertakers shall be caused, the Authority shall bear and pay the cost reasonably incurred by the undertakers in making good such damage, or in restoring the supply of gas or electricity (as the case may be) and shall—

(a) make reasonable compensation to the undertakers for any loss sustained by them; and

(b) indemnify the undertakers against all claims, demands, proceedings, costs, damages and expenses which may be made or taken against or recovered from or incurred by the undertakers;

by reason or in consequence of any such damage or interruption:

Provided that—

(i) nothing in this paragraph shall impose any

liability on the Authority with respect to any damage or interruption to the extent that such damage or interruption is attributable to the act, neglect or default of the undertakers or their contractors or workmen;

(ii) the undertakers shall give to the Authority reasonable notice of any claim or demand as aforesaid and no settlement or compromise thereof shall be made without the prior consent of the Authority:

(14) The temporary stopping up or diversion of any road, bridleway or footpath under the powers of section 11 (Temporary stoppage of watercourses, roads, footpaths and bridleways) of this Act shall not prevent the undertakers from obtaining access to any apparatus nor prejudice or affect any right of the undertakers—

(a) to lay, erect, maintain, inspect, renew or remove any apparatus in the road, bridleway or footpath; or

(b) for the purposes of such laying, erection, maintenance, inspection, renewal or removal to enter upon or break open that road, bridleway or footpath:

(15) (a) Any difference arising between the Authority and the undertakers under this section shall be settled by arbitration;

(b) In settling any difference under this section the arbitrator shall have regard to any duty or obligation which the undertakers may be under in respect of any apparatus and may, if he thinks fit, require the Authority to execute any temporary or other works so as to avoid, so far as may be reasonably possible, interference with any purposes for which the apparatus is used.

47. For the protection of British Telecommunications the following provisions shall, unless otherwise agreed in writing between the Authority and British Telecommunications, apply and have effect:—

For
protection of
British
Telecommuni-
cations.

(1) In this section, unless the subject or context otherwise requires “apparatus” means any telegraphic line belonging to or used by British Telecommunications and includes any works constructed for the lodging therein of apparatus:

(2) Notwithstanding anything in this Act or shown on the deposited plan the Authority shall not acquire any

PART V
—cont.

1981 c. 38.

apparatus under the powers of this Act otherwise than by agreement:

- (3) Nothing in section 4 (Power to construct works) of this Act shall authorise the doing of anything constituting an infringement of the exclusive privilege with respect to telecommunication conferred on British Telecommunications by subsection (1) of section 12 of the British Telecommunications Act 1981:
- (4) (a) The Authority shall in the construction of the bridge forming part of Work No. 44 (in this subsection referred to as “the bridge”) provide therein for the telegraphic lines of British Telecommunications accommodation as specified in paragraph (b) of this subsection;
- (b) The accommodation to be provided in the bridge in pursuance of the foregoing paragraph shall be for—
- (i) one duct having an external diameter of not more than 92 mm;
 - (ii) one duct having an external diameter of not more than 76 mm; and
 - (iii) four ducts each having an external diameter of not more than 89 mm;
- and shall be of such dimensions as may be agreed between British Telecommunications and the Authority;
- (c) The said accommodation shall be provided in accordance with plans, sections and particulars to be previously submitted to and reasonably approved by British Telecommunications:
- Provided that, if within one month of the receipt of the said plans, sections and particulars British Telecommunications have not intimated their disapproval thereof or made any requirement with respect thereto, they shall be deemed to have approved the same;
- (d) The additional cost (if any) reasonably incurred by the Authority in providing the said accommodation shall be repaid to the Authority by British Telecommunications in a single payment or in such other manner as may be agreed between the Authority and British Telecommunications;
- (e) British Telecommunications shall, before the Authority complete the construction of the bridge, lay down all such ducting and means of support as may be required in the said accommodation;
- (f) The work to be done by British Telecommunications under paragraph (e) of this subsection shall be completed as soon as reasonably practicable after the receipt by

British Telecommunications of a notice from the Authority that the said accommodation is ready;

PART V
—cont.

- (g) British Telecommunications shall conform with the reasonable requirements of the Authority as to the time or times at which and the manner in which British Telecommunications are to carry out the work under paragraph (e) of this subsection and the Authority shall be entitled to superintend such work. The costs reasonably incurred by the Authority in such superintendence shall be paid to the Authority by British Telecommunications;
 - (h) Any question which may arise between British Telecommunications and the Authority under this subsection shall be determined by arbitration:
- (5) (a) As soon as practicable after any footpath has been diverted in pursuance of the provisions of subsection (1) of section 10 (Power to divert footpaths) of this Act the Authority shall send by post to British Telecommunications a notice informing them of such diversion;
- (b) Where a footpath has been so diverted the following provisions of this paragraph shall, unless otherwise agreed between the Authority and British Telecommunications, have effect in relation to so much of any telegraphic line belonging to or used by British Telecommunications as is under, in, upon, over, along or across the land which by reason of the diversions ceases to be a footpath (in this paragraph referred to as “the affected line”):—
- (i) the power of British Telecommunications to remove the affected line shall be exercisable notwithstanding the diversion so however that the said power shall not be exercisable as respects the whole or any part of the affected line after the expiration of a period of three months from the date of the sending of the notice referred to in paragraph (a) of this subsection unless, before the expiration of that period, British Telecommunications have given notice to the Authority of their intention to remove the affected line or that part thereof, as the case may be;
 - (ii) British Telecommunications may by notice in that behalf to the Authority abandon the affected line, or any part thereof, and shall be deemed, as respects the affected line, or any part thereof, to have abandoned it at the expiration of the said period of three months unless before the expiration of that period British Telecommunications have removed it or given notice of their intention to remove it;

PART V
—cont.

(iii) British Telecommunications shall be entitled to recover from the Authority the expense of providing in substitution for the affected line, and any telegraphic line connected therewith which is rendered useless in consequence of the removal or abandonment of the affected line, a telegraphic line in such other place as they may require;

(iv) where under sub-paragraph (ii) of this paragraph British Telecommunications have abandoned the whole or any part of the affected line it shall vest in the Authority and the provisions of the Telegraph Acts 1863 to 1916 shall not apply in relation to it as respects anything done or omitted after the abandonment thereof:

- (6) Nothing in subsection (3) of section 15 (Discharge of water into streams) of this Act shall affect the rights of British Telecommunications under section 7 of the Telegraph Act 1878.

1878 c. 76.

For
protection of
British
Waterways
Board.

48. For the protection of the board the following provisions shall, unless in any case it is otherwise agreed between the Authority and the board, apply and have effect:—

- (1) In this section—

“ authorised work ” means Works Nos. 4, 7, 8, 9, 9A, 13, 13A, 15, 16, 19, 32A, 33A, 35, 38 and 46 together with all necessary works and conveniences connected therewith;

“ the engineer ” means an engineer to be appointed by the board:

- (2) The Authority shall not under the powers of this Act acquire compulsorily any lands of the board, but they may acquire and the board shall, if so required by them, grant to the Authority such easements and rights in the lands of the board, shown on the deposited plans, as the Authority may reasonably require for the purposes of the authorised work:
- (3) The Authority shall, before commencing an authorised work, furnish to the board proper and sufficient plans therefor for the approval of the engineer, and shall not commence that authorised work until such plans shall have been approved by the engineer or, in the case of difference between the engineer and the Authority, until they shall have been settled by arbitration:

Provided that—

(a) the approval of the engineer shall not be unreasonably withheld;

(b) if within twenty-eight days after such plans have been furnished to the board the engineer shall not have intimated his approval or disapproval thereof, he shall be deemed to have approved them:

PART V
—cont.

- (4) Upon signifying his approval or disapproval of the plans the engineer may specify any temporary or permanent works which should be carried out before the commencement or during the construction of the authorised work in order to ensure the stability of the navigation or to protect it from injury from the authorised work, and such temporary or permanent works as may be reasonably necessary for those purposes shall be constructed by the Authority with all reasonable dispatch, and the cost of constructing such protective works shall be paid by the Authority and the Authority shall not commence or (as the case may be) continue the construction of the authorised work until the engineer shall have notified the Authority that such temporary or permanent works have been completed to his satisfaction:
- (5) The Authority shall give to the engineer twenty-eight days' notice of their intention to commence the construction of any of the authorised works and except in emergency (when they shall give such notice as may be reasonably practicable) also of their intention to carry out any works for the repair or maintenance of the authorised works:
- (6) An authorised work shall, when commenced, be carried out with all reasonable dispatch in accordance with the approved plans and under the supervision (if given) and to the reasonable satisfaction of the engineer, and in such manner as to cause as little damage to the navigation and as little interference with or delay or interruption to traffic on the navigation, as may be:
- (7) The Authority shall at all times afford reasonable facilities to the engineer for access to an authorised work during its construction and shall supply him with all such information as he may reasonably require with regard to the authorised work or the method of construction thereof:
- (8) The Authority shall effectively indemnify and hold harmless the board from and against all actions, claims, suits and demands and all losses, costs, damages and expenses which they may sustain, incur or be put to at the suit of a third party as a result of the construction, operation, presence or failure of an authorised work

PART V
—cont.

(whether caused by the act, neglect or default of the Authority or not) and the fact that any work or thing may have been done by the board on behalf of the Authority or in accordance with any plan approved by the engineer or in accordance with any requirement of the engineer or under his supervision shall not (if it was done without negligence on the part of the board or of any person in their employ or of their contractors or others whilst engaged upon the works) excuse the Authority from any liability under the provisions of this section:

Provided that the board shall give to the Authority reasonable notice of any claim or demand as aforesaid and no settlement or compromise thereof shall be made without the prior consent of the Authority:

- (9) Any difference arising between the Authority and the board under this section shall be settled by arbitration.

For
protection of
British
Railways
Board.

49. For the protection of the British Railways Board (in this section referred to as “the railways board”) the following provisions shall, unless otherwise agreed in writing between the Authority and the railways board, apply and have effect:—

(1) In this section—

“construction” includes execution, placing and altering and “construct” and “constructed” have corresponding meanings;

“the engineer” means an engineer to be appointed by the railways board;

“plans” include sections, drawings, specifications, soil reports, calculations and descriptions (including descriptions of methods of construction);

“railway property” means any railway of the railways board and any works connected therewith for the maintenance or operation of which the railways board are responsible and includes any lands held or used by the railways board for the purposes of such railway or works;

“specified works” means so much of the works (whether temporary or permanent) authorised by this Act or by section 16 of the Railways Clauses Consolidation Act 1845, as incorporated with this Act, as may be situated upon, across, under, over or within 15 metres of, or may in any way affect, railway property and includes the maintenance and renewal of such works:

- (2) The exercise of the powers of the Railways Clauses Consolidation Act 1845 with respect to the temporary occupation of land as applied by section 3 (Application of enactments) of, and incorporated with, this Act shall not prevent the exercise by the railways board of such rights as the railways board may have of access (with or without vehicles, plant, machinery and materials) for the railways board and their agents, contractors and employees over any such land to and from railway property:
- (3) (a) The powers of section 11 (Temporary stoppage of watercourses, roads, footpaths and bridleways), section 13 (Diversion of flow of water in certain watercourses), section 14 (Power to Authority to improve and regulate flow of watercourses), section 15 (Discharge of water into streams) and section 17 (Power to use bed and banks of watercourses) of this Act shall not be exercised with respect to a watercourse in, on, under or over railway property without the consent of the railways board and any such consent may be given subject to such reasonable conditions (other than a monetary payment as the consideration for the grant of the consent) as the railways board may think fit to impose but shall not be unreasonably withheld:
- (b) In the exercise of the powers of the said section 11 with respect to any road the Authority shall at all times ensure reasonable access to, and egress from—
 - (i) any station, depot or other premises of the railways board for vehicles and pedestrians;
 - (ii) any other railway property for the railways board and their agents, contractors and employees (with or without vehicles, plant, machinery and materials):
- (4) The Authority shall not under the powers of this Act acquire compulsorily any railway property but they may in accordance with the provisions of section 24 (Power to acquire easements only) of this Act acquire such easements and rights in any railway property delineated on the deposited plans as they may reasonably require for the purposes of the works:
- (5) The Authority shall fence off the specified works from railway property to the satisfaction of the engineer where reasonably required by him:
- (6) The Authority shall before commencing the specified works (other than works of maintenance or repair)

PART V
—cont.

furnish to the railways board proper and sufficient plans thereof for the reasonable approval of the engineer and shall not commence the specified works until plans thereof have been approved in writing by the engineer or settled by arbitration:

Provided that if within forty-two days after such plans have been furnished to the railways board the engineer shall not have intimated his disapproval thereof and the grounds of his disapproval he shall be deemed to have approved the same:

- (7) If within forty-two days after such plans have been furnished to the railways board the railways board shall give notice to the Authority that the railways board desire themselves to construct any part of the specified works which in the opinion of the engineer will or may affect the operation of the railway or the stability of railway property then if the Authority desire such part of the specified works to be constructed the railways board shall construct the same with all reasonable dispatch on behalf of and to the reasonable satisfaction of the Authority in accordance with the plans approved or deemed to be approved or settled as aforesaid:
- (8) Upon signifying his approval or disapproval of the plans the engineer may specify any protective works whether temporary or permanent which in his opinion should be carried out before the commencement of the specified works to ensure the safety or stability of railway property and such protective works as may be reasonably necessary for those purposes shall be constructed by the railways board or by the Authority if the railways board so desire with all reasonable dispatch and the Authority shall not commence the construction of the specified works until the engineer shall have notified the Authority that the protective works have been completed to his reasonable satisfaction:
- (9) (a) The Authority shall give to the engineer notice in writing of their intention to commence the construction of any of the specified works in accordance with sub-paragraph (b) of this paragraph and except in emergency (when they shall give such notice as may be reasonably practicable) also of their intention to carry out any works for the repair or maintenance of the specified works;
- (b) The period of notice required to be given by the Authority to the railways board by virtue of sub-paragraph (a) of this paragraph shall be—

(i) six months in any case where upon signifying his approval or disapproval of plans pursuant to paragraph (6) of this section, the engineer has reasonably given it as his opinion that the construction, maintenance or repair of the specified works will require the Authority to have temporary occupation of the permanent way of the railway (including land lying within a distance of 2 metres from any outer rail of the railway) or will necessitate the imposition of speed restrictions, or the substitution, diversion or suspension of train services; and

(ii) two months in all other cases:

- (10) The specified works shall when commenced be carried out with all reasonable dispatch in accordance with the plans approved or deemed to have been approved or settled as aforesaid and under the supervision (if given) and to the reasonable satisfaction of the engineer and in such manner as to cause as little damage to railway property as may be and so far as is reasonably practicable so as not to interfere with or obstruct the free, uninterrupted and safe user of the railway or the traffic thereon and the use by passengers of railway property; and if any damage to railway property or any such interference or obstruction shall be caused or take place the Authority shall, notwithstanding any such approval as aforesaid, make good such damage and shall on demand pay to the railways board all expenses to which they may be put and compensation for any loss which they may sustain by reason of any such damage, interference or obstruction:
- (11) The Authority shall at all times afford reasonable facilities to the engineer for access to the specified works during their construction and shall ensure access for the engineer at all reasonable times to all working sites, depots and works at which materials to be employed in the construction of the specified works are being made, constructed or assembled and shall supply him with all such information as he may reasonably require with regard to the specified works or the method of construction thereof:
- (12) The railways board shall at all times afford reasonable facilities to the Authority and their agents for access to any works carried out by the railways board under this section during their construction and shall supply the Authority with such information as they may reasonably require with regard to such works or the method of construction thereof:

PART V
—cont.

(13) If any alterations or additions either permanent or temporary to railway property shall be reasonably necessary in consequence of the construction of the specified works such alterations and additions may be effected by the railways board after notice has been given to the Authority and the Authority shall pay to the railways board on demand the cost thereof as certified by the engineer including in respect of permanent alterations and additions a capitalised sum representing the increased or additional cost of maintaining, working and when necessary renewing any such alterations or additions:

(14) The Authority shall repay to the railways board all costs, charges and expenses reasonably incurred by the railways board—

(a) in constructing any part of the specified works on behalf of the Authority as provided by paragraph (7) of this section or in constructing any protective works under the provisions of paragraph (8) of this section including in respect of any permanent protective works a capitalised sum representing the cost of maintaining and renewing such works;

(b) in respect of the employment of any inspectors, signalmen, watchmen and other persons whom it shall be reasonably necessary to appoint for inspecting, watching, lighting and signalling railway property and for preventing as far as may be all interference, obstruction, danger or accident arising from the construction, maintenance, repair or failure of the specified works;

(c) in respect of any special traffic working resulting from any speed restrictions which are necessary as a result of the construction, maintenance, repair or failure of the specified works and which may in the opinion of the engineer be required to be imposed or from the substitution or diversion of services which may be necessary for the same reason;

(d) in respect of any additional temporary lighting of railway property in the vicinity of the specified works being lighting made reasonably necessary as a result of the specified works or the failure thereof;

(e) in respect of the approval by the engineer of plans submitted by the Authority and the supervision by him of the specified works:

- (15) If at any time after the completion of the specified works not being works vested in the railways board the railways board shall give notice to the Authority informing them that the state of repair of the specified works appears to be such as to affect prejudicially railway property, the Authority shall, on receipt of such notice, take such steps as may be necessary to put the specified works in such state of repair as not to affect prejudicially railway property and, if and whenever the Authority fail to do so, and at any time in case of emergency (without being required to give notice as aforesaid) the railways board may make and do in and upon the lands of the railways board or of the Authority all such works and things as shall be requisite to put the specified works in such state of repair as aforesaid and the costs and expenses reasonably incurred by the railways board in so doing shall be repaid to them by the Authority:
- (16) All temporary structures, erections, works, apparatus and appliances erected or placed by the Authority under the powers of this Act, upon, over or under any railway of the railways board shall as soon as reasonably practicable be removed by the Authority at times to be agreed with, and to the reasonable satisfaction of, the engineer and in such a way as to cause as little damage to railway property and as little interference with, or interruption to, the traffic on the railways of the railways board as may be and if any damage to railway property or such interference, delay or interruption shall be caused by any such failure to remove any such temporary structures, erections, works, apparatus or appliances the Authority shall forthwith make good such damage and pay to the railways board the reasonable costs and expenses to which they may be put and reasonable compensation for any loss which they may sustain by reason of such damage, interference, delay or interruption:
- (17) Before providing any illumination or illuminated road traffic sign on or in connection with the specified works or in the vicinity of the railway the Authority shall consult with the railways board and comply with any reasonable requirements of the railways board in regard thereto with a view to ensuring that such illumination or illuminated sign could not be confused with any railway signal or other light used for controlling, directing or securing the safety of traffic on the railway:

PART V
—cont.

(18) Any additional expense which the railways board may reasonably incur after giving two months' notice to the Authority in widening, altering, reconstructing or maintaining railway property in pursuance of any powers existing at the passing of this Act by reason of the existence of the specified works shall be repaid by the Authority to the railways board:

(19) The Authority shall be responsible for and make good to the railways board all costs, charges, damages and expenses not otherwise provided for in this section which may be occasioned to or reasonably incurred by the railways board—

(a) by reason of the specified works or the failure thereof; or

(b) by reason of any act or omission of the Authority or of any persons in their employ or of their contractors or others whilst engaged upon the specified works;

and the Authority shall effectively indemnify and hold harmless the railways board from and against all claims and demands arising out of or in connection with the specified works or any such failure, act or omission as aforesaid and the fact that any act or thing may have been done by the railways board on behalf of the Authority or in accordance with plans approved by the engineer or in accordance with any requirement of the engineer or under his supervision shall not (if it was done without negligence on the part of the railways board or of any person in their employ or of their contractors or agents) excuse the Authority from any liability under the provisions of this section:

Provided that the railways board shall give to the Authority reasonable notice of any claim or demand as aforesaid and no settlement or compromise thereof shall be made without the prior consent of the Authority:

(20) Any difference arising between the Authority and the railways board under this section shall be settled by arbitration.

For
protection of
Redland
Aggregates
Limited.

50. For the protection of Redland Aggregates Limited (hereinafter referred to as "the company") the Authority shall not under the powers of this Act acquire any interest of the company in the lands delineated on the deposited plans and described in the deposited book of reference and therein numbered 241 and 241a otherwise than by agreement.

51. Where under this Act any dispute or difference is to be referred to or determined by arbitration, then, unless otherwise provided, such dispute or difference shall be referred to, and determined by, a single arbitrator to be agreed between the parties, or, failing agreement, to be appointed on the application of either party (after notice in writing to the other) by the President of the Institution of Civil Engineers.

PART V
—cont.
Arbitration.

52. In their application to development authorised by Part II (Works) of this Act, Article 3 of, and Class XII in Schedule 1 to, the Town and Country Planning General Development Order 1977 shall have effect as if the authority to develop given by this Act in respect of Works Nos. 1 to 58 were limited to such development begun within fifteen years after the passing of this Act.

Saving for
Town and
Country
Planning
Act 1971.
1971 c. 78.
S.I. 1977/289.

53. Nothing in this Act affects prejudicially any estate, right, power, privilege or exemption of the Crown and in particular and without prejudice to the generality of the foregoing nothing in this Act authorises the Authority to take, use, enter upon or in any manner interfere with any land or hereditaments or any rights of whatsoever description (including any portion of the shore or bed of the sea or of any river, channel, creek, bay or estuary)—

- (a) belonging to Her Majesty in right of Her Crown and under the management of the Crown Estate Commissioners without the consent in writing of those commissioners; or
- (b) belonging to a government department or held in trust for Her Majesty for the purposes of a government department without the consent in writing of that government department.

54. The Acts specified in Schedule 4 to this Act are hereby repealed to the extent specified in that Schedule.

Repeals.

SCHEDULES

Section 10.

SCHEDULE 1

FOOTPATHS TO BE DIVERTED

1949 c. 97.

(1)	(2)	(3)	(4)	(5)
Footpath	County	Borough	Parish	Letters on deposited plans showing extent of stopping up
No. on map prepared under section 32 of the National Parks and Access to the Countryside Act 1949 ...				
K77	Leicester-shire	Charnwood	Loughborough area	C to D
K81	Leicester-shire	Charnwood	Loughborough area	C to E
I26	Leicester-shire	Charnwood	Sileby	F to G
I63B	Leicester-shire	Charnwood	Sileby	F to H H to J K to L

Section 24.

SCHEDULE 2

ADAPTATION OF PART I OF THE ACT OF 1965 IN CONNECTION WITH PURCHASE OF EASEMENTS OR RIGHTS

1. In the Act of 1965 (hereafter in this Schedule referred to as " the Act ") for section 7 (which relates to compensation) there shall be substituted the following:—

“ 7.—(1) In assessing the compensation to be paid by the Authority under this Act regard shall be had not only to the extent, if any, to which the value of the land over which the right is purchased is depreciated by the purchase but also to the damage, if any, to be sustained by the owner of the land by reason of injurious affection of other land of the owner by the exercise of the right.

1973 c. 26.

(2) The modifications subject to which subsection (1) of section 44 of the Land Compensation Act 1973 is to have effect, as applied by subsection (2) of that section to compensation for injurious affection under this section, are that for the words ‘ land is acquired or taken ’ there shall be substituted the words ‘ a right over the land is purchased ’ and for the words ‘ acquired or taken from him ’ there shall be substituted the words ‘ over which the right is exercisable ’.”.

2. For section 8 of the Act (which relates to cases in which a vendor cannot be required to sell part only of a building or garden) there shall be substituted the following:—

SCH. 2
—cont.

“ 8.—(1) Where in consequence of the service on a person in pursuance of section 5 of this Act of a notice to treat in respect of a right over land consisting of a house, building or manufactory or of a park or garden belonging to a house (hereafter in this subsection referred to as ‘ the relevant land ’)—

(a) a question of disputed compensation in respect of the purchase of the right would apart from this section fall to be determined by the Lands Tribunal (hereafter in this section referred to as ‘ the Tribunal ’); and

(b) before the Tribunal has determined that question the person satisfies the Tribunal that he has an interest which he is able and willing to sell in the whole of the relevant land and—

(i) where that land consists of a house, building or manufactory, that the right cannot be purchased without material detriment to that land; or

(ii) where that land consists of such a park or garden, that the right cannot be purchased without seriously affecting the amenity or convenience of the house to which that land belongs;

the compulsory purchase order to which the notice to treat relates shall, in relation to that person, cease to authorise the purchase of the right and be deemed to authorise the purchase of that person’s interest in the whole of the relevant land including, where the land consists of such a park or garden, the house to which it belongs, and the notice shall be deemed to have been served in respect of that interest on such date as the Tribunal directs.

(2) Any question as to the extent of the land in which a compulsory purchase order is deemed to authorise the purchase of an interest by virtue of the preceding subsection shall be determined by the Tribunal.

(3) Where in consequence of a determination of the Tribunal that it is satisfied as mentioned in subsection (1) of this section a compulsory purchase order is deemed by virtue of that subsection to authorise the purchase of an interest in land, the Authority may at any time within the period of six weeks beginning with the date of the determination, withdraw the notice to treat in consequence of which the determination was made; but nothing in this subsection prejudices any other power of the Authority to withdraw the notice.

(4) The modifications subject to which subsection (1) of section 58 of the Land Compensation Act 1973 is to have effect, as applied by subsection (2) of that section to the duty of the Tribunal in determining whether it is satisfied as mentioned in subsection (1) of this section, are that at the beginning of paragraphs (a) and (b) there shall be inserted the words ‘ a 1973 c. 26.

SCH. 2
—cont.

right over', for the word 'severance' there shall be substituted the words 'right on the whole of the house, building or manufactory or of the house and the park or garden' and for the words 'part proposed' and 'part is' there shall be substituted respectively the words 'rights proposed' and 'right is'."

3. The following provisions of the Act (which state the effect of a deed poll executed in various circumstances where there is no conveyance by persons with interests in the land), namely:—

section 9 (4) (failure of owners to convey);

paragraph 10 (3) of Schedule 1 (owners under incapacity);

paragraph 2 (3) of Schedule 2 (absent and untraced owners); and

paragraphs 2 (3) and 7 (2) of Schedule 4 (common land);

shall be so modified as to secure that, as against persons with interests in the land which are expressed to be overridden by the deed, the right which is to be purchased compulsorily is vested absolutely in the Authority.

4. Section 11 (Powers of entry) of the Act shall be so modified as to secure that as from the date on which the Authority has served notice to treat in respect of any right, it has power, exercisable in the like circumstances and subject to the like conditions, to enter for the purpose of exercising that right (which shall be deemed for this purpose to have been created on the date of service of the notice); and sections 12 (Penalty for unauthorised entry) and 13 (Entry on sheriff's warrant in the event of obstruction) of the Act shall be modified correspondingly.

5. Section 20 (Compensation for short-term tenants) of the Act shall apply with the modifications necessary to secure that persons with such interests as are mentioned in that section are compensated in a manner corresponding to that in which they would be compensated on a compulsory acquisition of the interests but taking into account only the extent (if any) of such interference with such interests as is actually caused, or likely to be caused, by the exercise of the right in question.

6. Section 22 (Protection of acquiring authority's possession of land where by inadvertence an interest in the land has not been purchased) of the Act shall be so modified as to enable the Authority, in circumstances corresponding to those referred to in that section, to continue to be entitled to exercise the right in question, subject to compliance with that section as respects compensation.

SCHEDULE 3

Section 39.

FORM OF FLOOD PREVENTION NOTICE
SEVERN-TRENT WATER AUTHORITY ACT 1983
FLOOD PREVENTION NOTICE

To the occupier
of the premises known as.....(a)

1. You are hereby informed that the Severn-Trent Water Authority have determined that.....(b)
being part of the above-mentioned premises, forms part of, or contributes to the efficiency of, the defences of some part of the Severn-Trent Water Authority's area against flooding.

2. By virtue of section 39 (Flood prevention) of the Severn-Trent Water Authority Act 1983 the service of this notice causes the said(c) to become a designated structure for the purposes of the said section.

3. A copy of the said section is enclosed with this notice.

Date.....

.....
(Signature of officer authorised to serve this notice).

(a) Sufficient description of premises of which the designated structure is part which may refer to a plan.

(b) Description of the wall, building, etc., forming the designated structure, which may refer to a plan.

(c) Brief, but sufficient, description of designated structure, e.g., "wall", "wharf", etc.

SCHEDULE 4
ENACTMENTS REPEALED

Section 54.

Chapter	Short title	Extent of repeal
1971 c. xiii.	Trent and Lincolnshire Water Act 1971.	Section 54 (Power to Trent and Lincolnshire Authorities to carry out trial borings, etc.); Section 55 (Power to Trent and Lincolnshire Authorities to require information as to ownership of land); in so far as those sections apply to the Authority.
1971 c. lviii.	Trent River Authority (General Powers) Act 1971.	Section 6 (Undertakings and agreements binding successive owners); Section 29 (Protection of members and officers of Authority from personal liability).
1973 c. xxxi.	Trent River Authority Act 1973.	Section 27 (Extension of section 76 of Act of 1963).

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FOR W. J. SHARP

Controller and Chief Executive of Her Majesty's Stationery Office and
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Severn-Trent Water Authority Act 1983

CHAPTER xvi

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